

SOLICITATION, OFFER, AND AWARD

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING

PAGE OF PAGES

2. CONTRACT NUMBER	3. SOLICITATION NUMBER	4. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☐ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	5. DATE ISSUED	6. REQUISITION/PURCHASE NUMBER
7. ISSUED BY	CODE	8. ADDRESS OFFER TO (If other than item 7)		

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".**SOLICITATION**

9. Sealed offers in original and _____ copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in _____ until _____ local time _____
(Hour) (Date)

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL:	A. NAME	B. TELEPHONE (NO COLLECT CALLS)		C. EMAIL ADDRESS
		AREA CODE	NUMBER	EXTENSION

11. TABLE OF CONTENTS

(X)	SECTION	DESCRIPTION	PAGE(S)	(X)	SECTION	DESCRIPTION	PAGE(S)
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OFFER (Must be fully completed by offeror)

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause Number 52.232-8)	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):	AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE
15A. NAME AND ADDRESS OF OFFEROR	CODE	FACILITY	16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	
15B. TELEPHONE NUMBER	15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.		17. SIGNATURE	18. OFFER DATE
AREA CODE	NUMBER	EXTENSION		

AWARD (To be completed by Government)

19. ACCEPTED AS TO ITEMS NUMBERED	20. AMOUNT	21. ACCOUNTING AND APPROPRIATION
22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT: ☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ()	23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	ITEM
24. ADMINISTERED BY (If other than Item 7)	25. PAYMENT WILL BE MADE BY	CODE
26. NAME OF CONTRACTING OFFICER (Type or print)	27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

AUTHORIZED FOR LOCAL REPRODUCTION
Previous edition is unusable

STANDARD FORM 33 (REV. 12/2022)
Prescribed by GSA - FAR (48 CFR) 53.214 (c)

Section A - Solicitation/Contract Form

Naval Sea Logistics Center Readiness Based Sparing Services

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

NOTE: For the total hours shown above for each labor CLIN, see the "Recommended Labor Mix" provided within Attachment 4 - Personnel Qualifications.

(End Of Note)

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
6000	Base Year Labor - NAVSEALOGCEN Readiness Based Sparing Services Pricing Arrangement: Cost Plus Fixed Fee	34,620	Labor Hours		
Option Line Item 6100	Option Year 1 Labor - NAVSEALOGCEN Readiness Based Sparing Services Pricing Arrangement: Cost Plus Fixed Fee	47,700	Labor Hours		
Option Line Item 6200	Option Year 2 Labor - NAVSEALOGCEN Readiness Based Sparing Services Pricing Arrangement: Cost Plus Fixed Fee	56,420	Labor Hours		
Option Line Item 6300	Option Year 3 Labor - NAVSEALOGCEN Readiness Based Sparing Services Pricing Arrangement: Cost Plus Fixed Fee	56,420	Labor Hours		
Option Line Item 6400	Option Year 4 Labor - NAVSEALOGCEN Readiness Based Sparing Services Pricing Arrangement: Cost Plus Fixed Fee	56,420	Labor Hours		
7000	Base Year ODCs - NAVSEALOGCEN Readiness Based Sparing Services Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 7100	Option Year 1 ODCs - NAVSEALOGCEN Readiness Based Sparing Services Pricing Arrangement: Cost No Fee	1	Lot		

Option Line Item 7200	Option Year 2 ODCs - NAVSEALOGCEN Readiness Based Sparing Services Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 7300	Option Year 3 ODCs - NAVSEALOGCEN Readiness Based Sparing Services Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 7400	Option Year 4 ODCs - NAVSEALOGCEN Readiness Based Sparing Services Pricing Arrangement: Cost No Fee	1	Lot		
8000	Base Year Data (Not Separately Priced) - Contract Data Requirements List - To be delivered in accordance with DD Form 1423-1				
Option Line Item 8100	Option Year 1 Data (Not Separately Priced) - Contract Data Requirements List - To be delivered in accordance with DD Form 1423-1				
Option Line Item 8200	Option Year 2 Data (Not Separately Priced) - Contract Data Requirements List - To be delivered in accordance with DD Form 1423-1				
Option Line Item 8300	Option Year 3 Data (Not Separately Priced) - Contract Data Requirements List - To be delivered in accordance with DD Form 1423-1				
Option Line Item 8400	Option Year 4 Data (Not Separately Priced) - Contract Data Requirements List - To be delivered in accordance with DD Form 1423-1				

Additional Regulation or Supplemental Clauses Incorporated by Full Text**B-215-H001 MAXIMUM RATES****(Oct 2018)**

(a) Maximum Pass Through Rates - Applicable to all Task Orders Types. The pass through rate is defined as the cumulative amount of the two elements listed below divided by the price paid to the subcontractor or the vendor:

- (1) any and all prime contractor indirect costs including, but not limited to: overhead, material handling charges, G&A, burdens and mark-ups; and
- (2) any and all prime contractor profit or fee*

*For purposes of this contract, "fee" means "target fee" in cost-plus-incentive-fee type contracts, "base fee" in cost-plus-award-fee type contracts, or "fixed fee" in cost-plus-fixed-fee type contracts.

(b) The Contractor agrees that the maximum pass-through rate that shall be charged against any non-ODC CLIN where labor is proposed under this contract shall not exceed **8%**. For purposes of the maximum pass-through, any effort provided by a division, subsidiary or any other entity of the prime contractor shall not be considered subcontracted effort and all fee/profit must be provided at the prime level subject to the limitations specified in this contract.

(c) Maximum Profit/Fee Rate - Applicable to Cost Plus Fixed Fee CLINs Only. Contractor compliance with the maximum fee rate on CPFF CLINs is applicable at the time of task order award and is based on the ratio of fixed fee to the estimated cost. A proposed fee at the task order level that is higher than the maximum fee rate stated in the offeror's base contract shall render the contractor's proposal unacceptable. The Contractor agrees that the maximum fixed fee rate shall not exceed **8%**. Fee becomes a fixed dollar amount at the time of task order award and is subject to the provisions of the Level of Effort clause of the task order. The maximum fee rate being proposed at the task order level by the prime contractor shall flow down to all subcontractors/consultants included as part of your (the Prime) proposal.

(d) Other Direct Costs and Travel. No fee is allowed on Other Direct Costs or Travel. Indirect cost elements such as G&A and material handling may be applied to ODCs but may not include fee.

(End of text)

B-216-H006 FEE TABLE (NAVSEA) (MAR2019)

(Mar 2019)

Labor CLIN	Labor Hours	Cost Per Hour*	Fee Rate Per Hour*	Loaded Hourly Rate

*The offeror shall divide the proposed fee for each CLIN by the quantity of labor hours indicated to complete the table. Fee is calculated based on cost less FCCOM; if FCCOM is proposed, necessary columns may be added.

In the event of any inconsistency between the above table and the CLIN pricing, the CLIN pricing shall take precedence.

(End of Text)

B-231-H001 TRAVEL COSTS (NAVSEA) (OCT 2018)

(Oct 2018)

(a) Except as otherwise provided herein, the Contractor shall be reimbursed for its actual travel costs in accordance with FAR 31.205-46. The travel costs to be reimbursed shall be those costs for which the Contractor has maintained appropriate documentation and which have been determined to be allowable, allocable, and reasonable by the Procuring Contracting Officer, Administrative Contracting Officer, or their duly authorized representative.

(b) Reimbursable travel costs include only that travel performed from the Contractor's facility to the worksite, in and around the worksite, and from the worksite to the Contractor's facility.

(c) Relocation costs and travel costs incidental to relocation are allowable to the extent provided in FAR 31.205-35; however, Procuring Contracting Officer approval shall be required prior to incurring relocation expenses and travel costs incidental to relocation.

(d) The Contractor shall not be reimbursed for the following daily local travel costs:

- (i) travel at U.S. Military Installations where Government transportation is available,
- (ii) travel performed for personal convenience/errands, including commuting to and from work, and
- (iii) travel costs incurred in the replacement of personnel when such replacement is accomplished for the Contractor's or employee's convenience.

(End of Text)

B-232-H006 LIMITATION OF COST OR LIMITATION OF FUNDS CLARIFICATION

(Oct 2018)

The clause entitled "Limitation of Cost" (FAR 52.232-20) or "Limitation of Funds" (FAR 52.232-22), as appropriate, shall apply separately and independently to each separately identified estimated cost.

(End of Text)

B-232-H005 PAYMENTS OF FEE(S) (LEVEL OF EFFORT)--ALTERNATE I

(Oct 2018)

(a) For purposes of this contract, "fee" means "target fee" in cost-plus-incentive-fee type contracts, "base fee" in cost-plus-award-fee type contracts, or "fixed fee" in cost-plus-fixed-fee type contracts.

(b) The Government shall make payments to the Contractor, subject to and per the clause in this contract entitled "Fixed Fee" (FAR 52.216-8) or "Incentive Fee", (FAR 52.216-10), as applicable. Such payments shall be submitted by and payable to the Contractor pursuant to the clause of this contract entitled "Allowable Cost and Payment" (FAR 52.216-7), subject to the withholding terms and conditions of the "Fixed Fee" or "Incentive Fee" clause, as applicable. Fee paid per hour shall be based on total fee dollars divided by total hours to be provided. Total fee(s) paid to the Contractor shall not exceed the fee amount(s) set forth in this contract. In no event shall the Government be required to pay the Contractor any amount in excess of the funds obligated under this contract.

(End of Text)

Section C - Description/Specifications/Statement of Work

NAVAL SEA LOGISTICS CENTER (NAVSEALOGCEN)

READINESS BASED SPARING (RBS) SERVICES

PERFORMANCE WORK STATEMENT

1.0 BACKGROUND

The Naval Sea Logistics Center (NAVSEALOGCEN) serves as a technical agent for developing, maintaining, and assessing life-cycle logistics support policies, procedures and data systems. NAVSEALOGCEN provides an interface between engineering and logistics, performing a wide range of acquisition and sustainment life cycle logistics support functions.

2.0 OBJECTIVE

NAVSEALOGCEN is procuring Readiness Based Sparing (RBS) Modeling services to provide support for executing its mission to provide life-cycle logistics support solutions for US Naval systems. The objective of this Performance Work Statement (PWS) is to identify the scope of the support to be provided in order to meet the needs of the Navy.

3.0 APPLICABLE DOCUMENTS

Documents required to perform the services, which will be provided as Government Furnished Information (GFI), are shown in Table C-1 below. Documents that are available via a public facing website have the websites listed. Documents for which an electronic copy of the document, but no website, is available are provided in Section J. For any documents marked "Export Controlled", see Section K clause K-227-W001 for details on accessing Defense Logistics Information Services (DLIS) Joint Certification Program (JCP).

Table C-1: Applicable Documents

Number	Name	PWS Paragraph Number
3.1	DoD Manual 4140.01, Volume 2 DoD Supply Chain Materiel Management Procedures: Demand and Supply Planning, November 9, 2018 https://www.esd.whs.mil/Portals/54/Documents/DD/issuances/414001m/414001m_vol02.pdf?ver=IP6NM_6J7ckQVJmUrWGSpQ%3D%3D	5.0
3.2	DoD Manual 5200.01 Vol. 1-3, DoD Information Security Program Volume 1: https://www.esd.whs.mil/Portals/54/Documents/DD/issuances/dodm/520001m_vol1.pdf?ver=2020-08-04-092500-203 Volume 2: https://www.esd.whs.mil/Portals/54/Documents/DD/issuances/dodm/520001m_vol2.pdf?ver=2020-08-04-112507-683 Volume 3: https://www.esd.whs.mil/Portals/54/Documents/DD/issuances/dodm/520001m_vol3.pdf?ver=MJfVD-nRd2HTyLSzDse9VQ%3d%3d	9.0
3.3	DoD Instruction 5200.02 Change 3, DoD Personnel Security Program https://www.esd.whs.mil/Portals/54/Documents/DD/issuances/dodi/520002p.pdf?ver=Kkxb3kqZMzCirDk1EJ5Ksg%3d%3d	9.0
	DoD Directive 5205.02E Change 2, DoD Operations Security (OPSEC) Program	

3.4	https://www.esd.whs.mil/Portals/54/Documents/DD/issuances/dodm/520502m.PDF?ver=Hym9p5Y2P7z-npaWfKgtmA%3d%3d	9.0
3.5	DoD Instruction 5200.08-R Change 1, Physical Security Program https://www.esd.whs.mil/Portals/54/Documents/DD/issuances/dodi/520008p.pdf?ver=2019-04-22-104600-590	9.0
3.6	DoD Instruction 5200.48, DoD CUI Program https://www.esd.whs.mil/Portals/54/Documents/DD/issuances/dodi/520048p.PDF?ver=2020-03-06-100640-800	9.0
3.7	DoD Instruction 8523.01, Communications Security (COMSEC) https://www.esd.whs.mil/Portals/54/Documents/DD/issuances/dodi/852301p.pdf?ver=SIueIOFBDXrJccz-IKW-w%3d%3d	9.0
3.8	SECNAVINST 3070.2, Operations Security https://www.secnav.navy.mil/doni/Directives/03000%20Naval%20Operations%20and%20Readiness/03-00%20General%20Operations%20and%20Readiness%20Support/3070.2A.pdf	9.0
3.9	SECNAVINST 5510.30C, DON Personnel Security Program https://www.secnav.navy.mil/doni/Directives/05000%20General%20Management%20Security%20and%20Safety%20Services/05-500%20Security%20Services/5510.30C.pdf	9.0
3.10	SECNAVINST 5510.36B, DON Information Security Program https://www.secnav.navy.mil/doni/Directives/05000%20General%20Management%20Security%20and%20Safety%20Services/05-500%20Security%20Services/5510.36B.pdf	9.0
3.11	OPNAVINST 2221.5D, Release of Communications Security Material to U.S. Industrial Firms Under Contract to the Department of the Navy https://www.secnav.navy.mil/doni/Directives/02000%20Telecommunications%20and%20Digital%20Systems%20Support/02-200%20Communications%20Security%20Services/2221.5D.pdf	9.0
3.12	OPNAVINST 3432.1A, Operations Security https://www.secnav.navy.mil/doni/Directives/03000%20Naval%20Operations%20and%20Readiness/03-400%20Nuclear,%20Biological%20and%20Chemical%20Program%20Support/3432.1A.pdf	9.0
3.13	OPNAVINST 4442.5B Readiness Based Sparing https://www.secnav.navy.mil/doni/Directives/04000%20Logistical%20Support%20and%20Services/04-400%20Supply%20and%20Material%20Services/4442.5B.pdf	5.1 & 5.6
3.14	NAVSEAINST 4441.12A/NAVSUPINST 4441.37A Maritime Allowance RBS Re-Provisioning and Change - Review Board (MARRC-RB) (Available as an attachment in Section J)	5.8

4.0 SCOPE

The contractor shall provide qualified personnel necessary to effectively and efficiently support NAVSEALOGCEN Mechanicsburg, PA in providing RBS modeling support, using OPUS software for assigned projects. Support shall be provided in data mining, data analysis, engineering modeling and simulation as identified in this PWS. [Currently, OPUS Suite is the only OPNAV-accredited tool for RBS. Access to OPUS Suite software will be provided by NAVSEALOGCEN.](#)

All Contractor personnel will require a Secret clearance in the performance of this task order. As defined in PWS paragraph 9.0 SECURITY REQUIREMENTS, the Contractor will be required to hold a Secret Facility Clearance and be able to hire personnel that can pass background investigations to attain a Secret clearance, which may require months to obtain. All contractor personnel must maintain a favorable investigation adjudication, follow the necessary rules and regulations for access to DoD installations, and, if necessary, appropriately handle and secure classified or restricted material.

NOTE: Personal services and inherently governmental function support are outside the scope of this task order. The Contractor shall not provide any personal services or inherently governmental functions support.

The Contractor shall immediately notify the Contracting Officer's Representative (COR) and Contracting Officer if it believes any tasking directed under the resulting task order is for personal services or an inherently governmental function.

The Government will not supervise or otherwise direct Contractor employees. The Government will inspect Contractor performance in accordance with the Quality Assurance Surveillance Plan (QASP) provided by Attachment 2, as included in Section J, and any other clauses included in the task order and basic contract.

Examples of prohibited inherently governmental functions are:

- a. Direction and control of Government employees;
- b. Determination of what Government property is to be disposed of and on what terms;
- c. Determining what supplies or services the Government will acquire;
- d. Binding the Government to take or not to take some action by contract, policy, regulation, authorization, order, or otherwise;
- e. Exerting ultimate control over the acquisition, use, or disposition of the property of the Government, including the collection, control, or disbursement of Federal funds;
- f. Approving any contractual documents, to include documents defining requirements, incentive plans, and evaluation criteria (which includes Purchase Card (P-Card) and contracts);
- g. Administering contracts (including ordering changes in contract performance, contract quantities, or delivery schedule, or warranty);
- h. Accepting or rejecting contractor products or services; and
- i. Terminating contracts.

5.0 NAVSEALOGCEN RBS SUPPORT TASKS

The Government Contracting Officer and/or Contracting Officer's Representative (COR) will provide Technical Instructions (TIs) to provide guidance of a contractor's effort toward certain areas of endeavor or lines of inquiry that fall within the task order PWS. Government personnel may provide general information or instructions on limitations and deadlines within the scope of the resulting task order and any TIs.

NAVSEALOGCEN RBS services provided by the Contractor will be reviewed by the COR in accordance with Attachment 2, the QASP, which includes the Performance Requirements Summary (PRS), and is included in Section J.

Tasks to be performed include:

5.1 RBS Software and Database Requirements

5.1.1 Provide subject matter technical expertise in the development of RBS models utilizing OPUS SUITE [OPUS and SIMLOX].

5.1.2 Submit System Access Authorization Requests (SAARs) and attain access to Open Architecture Retrieval System (OARS) after contract award and prior to issuance of technical instruction. (CDRL A003, DI-MGMT-82228)

5.1.3 Submit System Access Authorization Requests (SAARs) and attain access to the Re-Engineered Maritime Allowance Development (ReMAD) after contract award and prior to issuance of technical instruction. (CDRL A003, DI-MGMT-82228)

5.1.4 Submit the completed user agreement form and attain access to Decision Knowledge Programming for Logistics Analysis and Technical Evaluation platform (DECKPLATE), after contract award and prior to issuance of technical instruction. (CDRL A003, DI-MGMT-82228)

5.2 Contractor Support Service

5.2.1 Attend an initial NAVSEALOGCEN one-time training session covering the following topics: RBS configuration fields, building of a Reliability Block Diagram (RBD), RBS provisioning fields, utilizing allowance and demand data, determining part candidacy, and results file demonstration.

5.3 Technical Data Engineering Support

5.3.1 Provide and present a comprehensive system analysis consisting of recommendations for parts candidacy for the model [i.e. - RBS Model Parts Candidacy List. Critical parts to be included in the model] to NAVSEALOGCEN for quality assurance review before model development (CDRL A001, DI-PSSS-80134B). Recommendation efforts shall be summarized on CDRL A002, DI-MGMT-81991(T).

5.3.2 Provide and present Preliminary RBS Model [OPUS SUITE] Input Files and results utilizing the approved standardized NAVSEALOGCEN Preliminary RBS Model [OPUS SUITE] Results Spreadsheet (CDRL A001, DI-PSSS-80134B) with coversheet to memorialize the RBS allowance list, configuration, and part data to NAVSEALOGCEN for quality assurance review before delivery to stakeholders. Preliminary modelling efforts shall be summarized on CDRL A002, DI-MGMT-81991(T).

5.3.3 Amend the preliminary model as necessary according to NAVSEALOGCEN and provide updated OPUS SUITE input files and standardized NAVSEALOGCEN RBS Results Spreadsheet (CDRL A001, DI-PSSS-80134B). Amendment efforts shall be summarized on CDRL A002, DI-MGMT-81991(T).

5.4 Data Analysis Support Services

5.4.1 Assemble the necessary input data to develop RBS models for the designated shipboard system(s).

5.4.2 Ensure all contractor personnel utilize NAVSEALOGCEN developed desk guides to pull configuration data via DECKPLATE, allowancing data via ReMAD, Material, Maintenance, and Management (3M) data via OARs (e.g.-steaming hours, failures, demands, issues). (CDRL A003, DI-MGMT-82228)

5.4.3 Retrieve and analyze the provisioning data for the system variants from MBPS/Windchill via DECKPLATE, utilizing the configuration profile. (CDRL A003, DI-MGMT-82228)

5.4.3.1 Analyze the Source, Maintenance and Recoverability (SM&R) Coding of the provisioning data to ensure only procurable parts within the platform's maintenance level threshold are on board spare candidates. (CDRL A003, DI-MGMT-82228)

5.4.3.2 Analyze the provisioning data to ensure only system essential parts are modeled as onboard spare candidates. (CDRL A003, DI-MGMT-82228)

5.4.4 Retrieve Maintenance & Material Management (3M) data [e.g. - steaming hours, issues, demands, failures] via the Open Architecture Retrieval System (OARS) to identify parts with requisitions. (CDRL A003, DI-MGMT-82228)

5.4.5 Retrieve the Smart Allowance Computational History File (SACHF) to identify historical On-Board Repair Parts (OBRPs), using the Navy's Re-Engineered Maritime Allowance Development (ReMAD) interface. (CDRL A003, DI-MGMT-82228)

5.5 Reliability Block Diagram (RBD)/Functional Block Diagram (FBD) Development Support Services

5.5.1 Account for redundant components by incorporating Reliability/ Functional Block Diagrams into the RBS models. (CDRL A001, DI-PSSS-80134B)

5.5.2 Identify the part to block connections to generate an RBD which depicts the effect of a blocks failure on a system's functional performance accounting for interdependencies, redundancies, and equipment parameters [e.g. - Mean Time Between Failure (MTBF), Mean Time to Repair (MTTR), Duty Cycle]. (CDRL A001, DI-PSSS-80134B)

5.5.3 Account for series and parallel mission paths to generate predictive operational availability of the system. (CDRL A001, DI-PSSS-80134B)

5.6 Model-Based Product Support (MBPS) Navy Common Readiness Model (NCRM) Reliability Engineering Modeling

5.6.1 Execute and deliver RBS models to support a system's development and sustainment throughout its lifecycle using the Navy Common Readiness Model (NCRM). (CDRL A001, DI-PSSS-80134B)

5.6.1.1 Ensure all personnel utilize the RBS modeling System of Record [Currently, OPUS Suite 2023] to calculate the optimal balance between operational performance and Total Ownership Cost (TOC) of the technical system over its life cycle as described by the key performance parameter target and objective threshold.

5.6.1.2 Ensure all personnel develop RBS models utilizing the Navy's default settings for OPUS and SIMLOX. (CDRL A003, DI-MGMT-82228)

5.6.2 Perform analysis utilizing the RBS modeling System of Record Monte Carlo simulation software [Currently, OPUS Suite 2023's SIMLOX] application to perform simulations of the technical system to calculate the Operational Availability (Ao) of the selected spares package (CDRL A003, DI-MGMT-82228).

5.6.2.1 Develop a Design Reference Mission Profile (DRMP) for the system and ship class/installation site using the RBS modeling System of Record Monte Carlo simulation software [Currently, SIMLOX] simulation (CDRL A003, DI-MGMT-82228).

5.6.3 Provide model results to NAVSEALOGCEN and stakeholders utilizing the approved standardized NAVSEALOGCEN RBS Results Spreadsheet with coversheet to memorialize the RBS allowance list, configuration, and part data (CDRL A001, DI-PSSS-80134B). Summarize the related level of effort on CDRL A002, DI-MGMT-81991(T).

5.6.3.1 Provide a model results cover page with the system nomenclature, description of workbooks, model notes, assumptions, configuration data sources with extraction dates, part data source with extraction dates, logistical delay times, SM&R coding included in the model, target and objective thresholds, operational profile of the system, RBD source, modeler point of contact information, and initial model run date (CDRL A001, DI-PSSS-80134B).

5.6.3.2 Provide an RBS Allowance List, identifying every National Item Inventory Number (NIIN) utilized in the model, NIIN nomenclature, primary part number, unit price, allowance quantity for each OBRP, and total cost for each hull to achieve the Target and Objective Ao Thresholds (CDRL A001, DI-PSSS-80134B).

5.6.3.3 Provide the tabular configuration profile depicting the APL quantity for each hull modeled (CDRL A001, DI-PSSS-80134B). Summarize the related level of effort on CDRL A002, DI-MGMT-81991(T).

5.6.3.4 Provide the part data for all APLs in the system variant accounting for APL, APL Nomenclature, Cognizance Cog, NIIN, Federal Supply Class Code, Quantity per Application (QPA), Ordinance Alteration (ORDALT) Quantity Adjustment Code, Mission Essentiality Code, NIIN Description, SM&R coding, Unit Price, Acquisition Advise Code, Best Replacement Factor, Unit Issue Code, Allowance Override Designator Code, Allowance Override Quantity Code, Part Number, Commercial and Government Entity (CAGE) Code, and Minimal Replaceable Unit (CDRL A001, DI-PSSS-80134B). Summarize the related level of effort on CDRL A002, DI-MGMT-81991(T).

5.6.3.5 Provide the graph of the RBS modeling System of Record [Currently, OPUS Suite 2023] Cost/Efficiency Curve of the chosen spares package selected and the corresponding RBS modeling System of Record Monte Carlo simulation software [Currently, OPUS Suite 2023's SIMLOX] operational availability calculation (CDRL A001, DI-PSSS-80134B). Summarize the related level of effort on CDRL A002, DI-MGMT-81991(T).

5.7 In-Service Engineering Agent (ISEA)/Program Manager (PM) Approval

5.7.1 Provide the Preliminary NAVSEALOGCEN RBS Results Spreadsheet to the Program Manager (PM) and ISEA for review (CDRL A001, DI-PSSS-80134B).

5.7.2 Amend the preliminary model and Preliminary NAVSEALOGCEN RBS Results Spreadsheet as necessary according to ISEA /PM feedback (CDRL A001, DI-PSSS-80134B).

5.8 Maritime Allowance RBS Re-Provisioning and Change Review Board (MARRC-RB) Support Services

5.8.1 Provide support to NAVSEALOGCEN for the MARRC-RB RBS package submission upon receiving concurrence from the program office.

5.8.2 Provide the following artifacts to NAVSEALOGCEN for upload to the MARRC-RB Repository: Preliminary RBS Model [OPUS SUITE] Input Files, Reliability Block Diagram (RBD), Preliminary RBS Model [OPUS SUITE] Results Spreadsheet, Optimization execution date, and Target Performance Metric Reference (CDRL A001, DI-PSSS-80134B).

5.8.3 Amend the model as necessary based upon guidance from Naval Supply Systems Command (NAVSUP)/Naval Sea Systems Command (NAVSEA) Subject Matter Experts (SME) reviewing the model. Summarize the related level of effort on CDRL A002, DI-MGMT-81991(T).

5.8.4 Provide support and attend the MARRC-RB regularly scheduled and ad hoc meetings on the date and time the model is being presented for approval.

5.9 Customer Support Services

5.9.1 Provide support to NAVSEALOGCEN and attend the RBS Introductory Briefing Session with the program office stakeholders (CDRL A004, DI-QCIC-81794B).

5.9.2 Provide monthly Contractor Status Reports (CDRL A002, DI-MGMT-81991(T)) detailing a description of the project, summary of progress, milestones achieved, problems encountered, changes in requirements, overall assessment of the project, and an estimated date of completion.

5.10 Task Order Program and Project Management

5.10.1 The Contractor shall provide overall management of its employee and subcontractor employee efforts under the task order in accordance with the performance work statement (PWS) paragraphs 5.1 through 5.9 detailed herein (CDRL A004, DI-QCIC-81794B). The Contractor shall ensure that all work meets performance objectives, standards or tolerances specified or included in applicable documents. To meet task order requirements, work shall be performed within time limits specified; constraints present, and costs estimated in Government issued TIs. Through participation in planning meetings, the Contractor will receive information that the Contractor may utilize in setting milestones and performance objectives relative to specific tasks identified in a TI. The Contractor shall be responsive to all Government phone calls and emails related to significant matters (Cost, Schedule, and Performance) within two business days for routine action, and one business day for actions identified as urgent. Any effort undertaken by the Contractor other than in accordance with the provisions detailed herein shall be at the Contractor's risk and expense.

5.10.2 Reporting Requirements: Appendix C provides additional details on Reporting Requirements.

5.10.2.1 Contractor Status Report (CDRL A002, DI-MGMT-81991(T)): The report shall be submitted for each TI and include information necessary to substantiate the Contractors actions over the reporting period specific to the detailed TI. The report shall include:

- a. A summary of all work accomplished for the period, to include accomplishments and difficulties encountered, including staffing issues, as well as recommended solutions to problems/concerns identified.
- b. Summary totals by CLIN/SLIN for TI costs for the current period and cumulative to date under the TI. ODCs shall be reported on separate rows of each spreadsheet, under the labor rows.
- c. The contractor's cost data submitted in the eCraft system is considered to be a part of this report. The contractor's cost reporting in eCraft must match submitted invoices for the same period.
- d. All Task Order and TI labor hour, labor cost, and ODC cost information shall be submitted as electronic appendices to this report, using the format at Figures 1 of 2 of DI-MGMT-81991, as revised by CDRL A002, DI-MGMT-81991(T) of this task order. Figure 1 (Financial Labor Hour Data by Task) and Figure 2 (Work Completed by CLIN/SLIN) shall this PWS updated as required to reflect changes.

NOTE: For the "Figure 1" and "Figure 2" spreadsheets under TI Contractor Status Report (CDRL A002, DI-MGMT-81991(T)), the spreadsheets must be filtered to show, and made to contain, only the data for the individual TI being reported.

5.10.2.2 The Contractor shall submit a Proposed Spare Parts List (CDRL A001, DI-PSSS-80134B) and Contractor Status Report (CDRL A002, DI-MGMT-81991(T)) monthly. The Contractor Status Report shall detail any significant discussions/issues related to performance and shall contain separate attachments to address each of the following areas:

- a. Customer Complaint Log. The Contractor shall maintain a monthly log sheet of customer complaints.

- b. Workload Report. The Contractor shall collect and report to the Contracting Officer and COR, the total workload for the previous period by work identified in this PWS. This includes a summary of comprehensive RBS models submitted, accepted, and rejected for re-work; preliminary RBS models submitted; provisioning analysis; simulations; and customer support such as meeting participation.
- c. Staffing/Manning Report. The Contractor shall report all Contractor personnel employed and those requiring facility access. This report will provide a manning status that shows employee name, positions, vacant positions, and if applicable, prospective employees for vacant positions.
- d. Standard Operating Procedures. The Contractor shall provide a report of the Contractor's standard operating procedures for each employee under the TI.

6.0 GENERAL REQUIREMENTS

6.1 Task Order Modification

All changes to the resulting task order shall be authorized by the Contracting Officer by means of a properly executed modification. The Contractor shall not perform work that is considered to be outside of the scope of the requirements of this task order. If, in the opinion of the Contractor, an effort outside the existing scope of this task order is requested, the Contractor shall promptly notify both the Contracting Officer and COR in writing within 48 hours providing the date, nature, and circumstances of the conduct regarded as a change. The Contractor shall take no action unless the Contracting Officer has issued a formal modification.

6.2 Digital Data Management

The Contractor shall be responsible for the digital generation, reception, proper marking/handling, and electronic delivery of data. All data shall be developed, managed, used, and exchanged electronically to the greatest extent practicable. The Contractor shall maintain compatibility with the World Wide Web browser, electronic mail (e-mail), and software used by NAVSEALOGCEN throughout the life of the task order. NAVSEALOGCEN uses Microsoft Office products and Adobe Acrobat.

6.3 E-mail

E-mail shall be used to facilitate the transfer of unclassified data only. Use of e-mail shall not relieve the Contractor from compliance with other areas of this task order requiring other types of communication. The Contractor shall have the ability to receive and transmit encrypted emails.

6.4 Government Quality Assurance Surveillance Plan (QASP)

The Government will monitor The Contractor's performance in accordance with Attachment 2, the QASP, which is included in Section J. The Government reserves the right to review services to be provided to determine conformance with performance and technical requirements. Government quality assurance will be conducted on behalf of the Contracting Officer. The COR will be appointed to coordinate the overall quality assurance of technical compliance.

6.4.1 Contractor Quality Assurance Plan

The Contractor Quality Assurance Plan (CQAP) will ensure the products or services conform to the specified task order technical requirements as defined in the PWS; provide and maintain an inspection system acceptable to the Government covering the services under the task order; and implement procedures to identify and prevent defective services from recurring. The Contractor shall develop quality control procedures that address the areas identified in the AQLs identified in PWS Appendix A, and Attachment 2, the QASP included in Section J. The CQAP shall be addressed in a discrete section of the Contractor's Quality Assurance Program Plan (CDRL A004, DI-QCIC-81794B).

6.5 Management Plan

6.5.1 Management Program

The Contractor shall establish and maintain both a data management program and quality assurance program during task order performance, incorporating details of all major paragraphs of the PWS. The Quality Assurance Program Plan (QAPP)(CDRL A004, DI-QCIC-81794B) must address and reflect an understanding of all tasks and performance objectives specified in this PWS and describe an approach to satisfy these requirements. At a minimum, the plan shall identify how contractor quality policies and procedures are implemented at the program level and will be applied to accomplish this contract. The Contractor's Data Management Plan (CDMP) (CDRL A003, DI-MGMT-82228) shall, at a minimum, describe the Contractor's approach and proposed plan for data management as applicable to include management, organization, planning, assignment of functions, duties and responsibilities, procedures and policies, and reporting requirements of the tasks within this PWS.

6.5.2 Staffing and Retention

The support requires the ability to hire personnel that can pass background investigations to attain secret clearance, which may require months to obtain, maintain their favorable investigation adjudication, and follow the necessary rules and regulations for access to Department of Defense (DoD) installations and systems.

As a result, staffing and retention of qualified Contractor personnel is critical to continuity of performance under this PWS. The Contractor's QAPP (CDRL A004, DI-QCIC-81794B) shall address employee staffing and retention and specifically demonstrate the planning and methodologies that will be used to maximize staffing and retention of the Contractor personnel that are assigned to support this PWS, with special emphasis on retention of employees with active clearances.

6.5.3 Continuous Support

The Contractor's QAPP (CDRL A004, DI-QCIC-81794B) shall address how it will ensure task areas are continuously supported in the event of known absences and unexpected circumstances.

6.5.4 Replacement of personnel

In cases where the loss of personnel will impact task order performance, the Contractor shall ensure that a replacement action for all personnel that leave the task order is initiated within 30 calendar days of losing an incumbent employee. This means that a replacement candidate has been identified and at a minimum has begun the Contractor onboarding process. If the process for replacement of the personnel is expected to last more than 60 days, the Contractor must notify the Contracting Officer/COR within the same initial 30-day period. Notwithstanding these timelines, the Contractor shall remain responsible for continuous support of all PWS tasking. Status of all personnel and personnel replacement actions shall be included in the Contractor Status Report (CDRL A002, DI-MGMT-81991(T)).

6.6 Coverage, Location, Hours, and Overtime

6.6.1 Coverage

The Contractor shall provide manpower to ensure adequate coverage of tasking as required by the Government. Certain tasks, including, but not limited to, meeting attendance require the Contractor to adjust staffing to provide coverage from the beginning to end of support hours each workday. Specific details will be provided in TIs with requirements for such support.

The need for extended hours, off-hours or emergency support on a temporary or extended period may happen after normal hours and will be coordinated with the Contractor as necessary. Weekend and off-hour customer support shall be provided, when requested, by the COR. Individual employee shift variations and alternate work schedules may be used by the Contractor but must not negatively impact the task order deliverables or project schedules.

6.6.2 Location of Support

This effort does not require that contractor employees be co-located at a Government facility. It is anticipated that work will be performed at contractor sites or remotely.

Most meetings will be held virtually, with a lower percentage at other locations such as NAVSEALOGCEN, Mechanicsburg, PA.

6.6.3 Hours of Operation

The Contractor shall provide manpower to ensure adequate coverage to perform services required under this PWS during the normal operating hours of 0600 to 1800 hours local time; Monday through Friday except Federal holidays. Contractor personnel are not permitted to occupy NAVSEALOGCEN spaces without Government personnel present.

From time-to-time Government installations may be closed in response to an unforeseen emergency or similar occurrence, or by order of the President, Secretary of Defense, or installation commander. Designated emergencies include, but are not limited to, adverse weather such as snow or flood, an act of God such as a tornado or earthquake, acts of war or terrorism, computer failures, or a base disaster such as a natural gas leak or fire.

Under such designated emergencies or other ordered base closures, Contractor personnel will not be allowed on the Government installation unless specifically approved by the Contracting Officer in accordance with installation policies and procedures. If an emergency requiring installation closure occurs while Contractor personnel are on the installation, Contractor personnel shall promptly appropriately secure all Government property and evacuate in an expedient but safe manner unless otherwise directed by the Contracting Officer. If the contractor is unable to work from an alternate site, or if the contractor cannot complete assigned tasking due to unavailability of Government personnel, the contractor shall not charge labor hours to this task order for time periods covered by such designated emergencies or base closures.

6.7 Travel

All travel must be approved in advance by the Contracting Officer via TI. All travel will be in accordance with the Joint Travel Regulations (JTR). Should the need arise in such a manner that written authorization is not possible, a verbal authorization may be obtained from the Contracting Officer to be followed up in writing within 3 working days.

Prior to approval of any travel, the Contractor must submit to the COR a "travel request" to include: The purpose of the trip, number of travelers, name of travelers, number of days/nights, destination (to and from), and estimates for hotel, air, rental car, per diem, any other expenses, and total trip cost estimate. The request shall also include a statement that funds are or are not available under specific task order CLIN/SLINs in the amount required.

If travel, domestic or overseas, is required, the Contractor shall be responsible for making all needed arrangements for its personnel. This includes medical examinations; immunizations; passports, visas, and security clearances and other pertinent actions required to travel. If any work will take place on a U.S. Navy vessel, the Contractor shall obtain boarding authorization for all Contractor personnel from the Commanding Officer of the vessel. Authorization shall be obtained prior to boarding. Underway support may be required and shall be in compliance with all applicable guidance.

There may be situations where Contractor employees and Government employees travel together in Government vehicles, or in vehicles rented by the Government under the terms of the U.S. Car Rental Agreement the Government has with various rental car companies (currently available at <https://www.defensetravel.dod.mil/Docs/CarRentalAgreement.pdf>). In such situations, Contractor employees may only be passengers (not drivers) in such vehicles. If a Contractor employee is a passenger in a Government vehicle or a vehicle rented by the Government, it would be on a "no additional cost to the Government" basis. If a Contractor employee is a passenger in a Government vehicle, the Contractor shall indemnify and hold the Government harmless from all liability resulting from the following, but not exclusively: personal injury or death or damage to all or any property which may occur as a result of such joint travel. When a Contractor is a passenger in a vehicle rented by the Government, liability would be limited to the terms set out in the U. S. Car Rental Agreement in effect at the time of any incident.

It is not possible to reasonably estimate the annual travel requirements for this PWS in terms of specific trips. All travel will be invoiced under the Other Direct Cost line items for each period of performance.

6.8. Training

The Government requires Contractors to participate in certain mandatory training requirements. The COR will notify the Contractor of mandatory training as requirements arise. The training is posted through the Total Workforce Management System (TWMS) and completion is recorded when exiting the program appropriately. It is the responsibility of the Contractor to ensure that these training requirements are met and completed within the required timeframe. The training will be monitored by the Government for progression of completion. The mandatory training requirements at the time of this solicitation include, but are not limited to, those courses identified in TWMS.

Table C-2: Mandatory Training Requirements

Course Name
Cybersecurity 101 (one-time requirement)
Personally Identifiable Information (PII)
Records Management

Antiterrorism Awareness
Operations Security
Controlled Unclassified Information (CUI)
Derivative Classification (once every 2 years, as applicable)
Cyber Awareness Challenge
NAVSEA Environmental Awareness Training (once every 3 years)

It is estimated that eight (8) to ten (10) hours per person annually will be required to complete the training.

The Contractor shall ensure all training identified as required for each PWS paragraph 5 specific task area in this PWS is completed prior to providing support.

6.9 Contractor Personnel Identification

In accordance with DFARS 211.106, there shall be a clear distinction between Government employees and service Contractor employees. Contractor personnel identification safeguards are necessary to avoid potential conflicts of interest and other problems caused by inadvertent disclosure of proprietary or other sensitive information to non-Government personnel. The cost of Contractor personnel identification items shall not be charged to the ODC line of this task order (they will be considered unallowable costs).

6.9.1 Visual Identification at a Distance

All Contractor personnel must be readily distinguishable from Government personnel through the use of items that clearly identify them at a distance (e.g. through the use of color, stenciling, clothing, hats, lanyards or some other means).

6.9.2 Display of ID Badges

Contractor personnel shall wear Government issued ID badges (i.e. Common Access Cards (CACs)) at all times when performing work under this task order at a Government site, including while attending Government meetings and conferences that may take place outside the Government facility. Unless otherwise specified in the task order, each Contractor employee shall wear the ID badge in a conspicuous place on the front of exterior clothing and above the waist except when safety or health reasons prohibit such placement.

Personnel may be challenged and removed from the work area or denied access to the host installation if the ID badge is not worn.

6.9.3 Loss and Return of ID Badges

In the event that a Contractor employee damages or loses his or her ID badge, The Contractor shall report the lost or damaged ID badge within two (2) working hours of damage or loss.

The Contractor shall return all Government-furnished ID badges to the Government either within 24 hours of the completion of the task order or upon termination of an individual's employment, whichever comes first.

Contractor personnel failing to return their Government ID badge are subject to criminal charges under United States Code (USC) Title 18, Chapter 1, Section 499 and 701.

6.9.4 Identification in Communication

In addition, all Contractor personnel must clearly identify themselves as a Contractor employee when interacting with Government personnel through electronic means such as e-mail, to include identifying the company name and including the word "Contractor" in the e-mail signature line. Contractor employees shall identify themselves as Contractor personnel by introducing themselves or being introduced as Contractor personnel. Contractor personnel shall appropriately identify themselves as Contractor employees in telephone conversations and in all formal and informal written correspondence.

7.0 GOVERNMENT PROPERTY MADE AVAILABLE FOR CONTRACTOR USE

7.1 Workspace

Performance at Government facilities is not anticipated. For work performed at the Contractor facility the Contractor shall be responsible for providing its own office space and office equipment, with the exception of a Navy Marine Corps Intranet (NMCI) laptop computer.

7.2 Computers

The Government will provide NMCI computers for the use of the Contractor in performing the requirements of the PWS as listed in Attachment 7, Government Furnished Property List, as referenced by Section J. This list will be finalized after award. No Government equipment will be provided to the Contractor unless and until said equipment has been accounted for by a GFP Attachment to Section J of this task order. The Contractor shall provide an inventory of the Government Furnished Property within 45 days after task order award and monthly thereafter (CDRL A006).

The Contractor shall comply with the following guidelines:

- a. Connection of privately owned computers to a Government network is prohibited.
- b. Connection of privately owned handheld computing devices to Government computers and networks is prohibited.
- c. Use of privately owned software on Government computers is prohibited.

7.3 IT Environment

The Contractor will use Government networks, servers, software, repositories, and systems while working at a Government site, and in some cases at non-Government sites.

7.4 Appropriate Use

The Contractor and any employee or consultant of the Contractor is prohibited from using US Government facilities, equipment and/or information for any purpose except as specifically described herein and related to this task order. Contractor personnel shall not divulge or release data or information developed or obtained in performance of this task order until made public by the Government, except to authorize Government personnel. The Contractor shall not use, disclose, or reproduce proprietary data other than as required in the performance of this task order.

8.0 TRANSITION SUPPORT

8.1 Transition Phase In

A transition plan meeting will be held at NAVSEALOGCEN in Mechanicsburg, PA wherein details of the transition plan will be formalized. The meeting time and date will be mutually agreed to by both parties.

8.2 Transition Phase Out

The Contractor shall during the transition phase-out period, provide a Phase-Out Transition Plan and support required to ensure the orderly transition of all support and transitional planning necessary to commence uninterrupted operation by the follow-on service provider (CDRL A005, DI-MGMT-81945A).

9.0 SECURITY REQUIREMENTS

DoD Manual 5200.01 Vol. 1-3, DoD Information Security Program

DoD Instruction 5200.48, DoD CUI Program

DoD Instruction 5200.02 Change 3, DoD Personnel Security Program

DoD Directive 5205.02E Change 2, DoD Operations Security (OPSEC) Program

DoD Instruction 5200.08-R Change 1, Physical Security Program

DoD Instruction 8523.01, Communications Security (COMSEC)

SECNAVINST 5510.36B, DON Information Security Program

SECNAVINST 5510.30C, DON Personnel Security Program

SECNAVINST 3070.2, Operations Security

OPNAVINST 3432.1A, Operations Security

OPNAVINST 2221.5D, Release of Communications Security Material to U.S. Industrial Firms Under Contract to the Department of the Navy

9.1 General Security Requirements

Contractor employees with access to government work spaces will be included in the command security education program per SECNAVINST M-5510.36B and must complete prescribed Department of Defense (DoD) or Department of Navy (DON) training requirements. Mandatory training requirements will be uploaded through the Total Workforce Management Services (TWMS). Additional security related training requirements will be provided by the Activity Security Manager (ASM) Michael DeMedici, at michael.r.demedici.civ@us.navy.mil.

Subcontracting requirements for classified contracts. Contractors shall immediately notify the Contracting Officer (KO) and Security Contracting Officer (SCO) prior to subcontracting. Prime vendors will submit a copy of the subcontracted DD 254(s) to the SCO for Facility Clearance verification and approval to prescribed access.

Security Inspections. Command security inspections shall occur annually and the Contracting Officer Representatives (COR) shall be informed of inspection results. Security inspections will include all embedded contractor personnel working in government facilities.

Contractor shall appoint a Facility Security Officer (FSO), if a cleared facility, or a Contractor Security Representative (CSR) if a non-cleared facility, to provide security support for this contract. Contractor shall provide the name, title, email address, and telephone to Michael DeMedici, at michael.r.demedici.civ@us.navy.mil, 717-605-4515.

9.2 OPERATIONS SECURITY REQUIREMENTS

Contractors working with NAVSEA Warfare Center contracts will adhere to Operation Security (OPSEC) requirements per the NAVSEA Warfare Center OPSEC policy or subsequent revisions. Specifically, "need-to-know" principle must be enforced for all discussions referencing organizational or systemic vulnerabilities and must be conducted in locations designated approved spaces. Contractors will not post information referenced in the Critical Information Listing (CIL) to social networking applications nor utilize photography or any other data-capturing device without prior approval from the NAVSEA Warfare Center security department.

Contractors will not use unofficial or personal (e.g., .net; .com) e-mail accounts, messaging systems, or other non-DoD information systems, except approved or authorized government contractor systems, to conduct official business involving Controlled Unclassified Information (CUI). This is necessary to ensure proper accountability for Federal records and to facilitate data spill remediation in accordance with Public Law 113-187 and the January 16, 2018 Deputy Secretary of Defense memorandum.

The Contractor shall protect critical information associated with this contract to prevent unauthorized disclosure. The NAVSEA CIL/ Critical Indicators and Information List (CIIL) will be provided on site, if warranted. Performance under this contract requires the contractor to adhere to OPSEC requirements. The Contractor may not impose OPSEC requirements on its subcontractors unless NAVSEA approves the OPSEC requirements. During the period of this contract, the Contractor may be exposed to, use, or produce, NAVSEA Critical Information (CI) and/or observables and indicators which may lead to discovery of CI. NAVSEA CI will not be distributed to unauthorized third parties, including foreign governments, or companies under Foreign Ownership, Control, or Influence (FOCI).

CUI correspondence transmitted internally on the contractor's unclassified networks or information systems, and externally, shall be protected per NIST SP-800-171, Protecting CUI in Non-federal Systems and Organizations. Assembled large components/systems being transported to and from testing areas, other production or government facilities (whether or not on public roadways) shall be in an enclosed van trailer or covered flatbed trailer. Component/System outside storage, staging, and test areas shall be shielded /obscured from public view wherever physically possible.

NAVSEA's CI shall not be publicized in corporate wide newsletters, trade magazines, displays, intranet pages or public facing websites. Media requests related to this project shall be directed to the KO, and the COR who will forward the request to the NAVSEA Public Release Authority for review, Aaron Meyer, aaron.m.meyer.civ@us.navy.mil, 717-605-1113

This is necessary to ensure proper accountability for Federal records and to facilitate data spill remediation in accordance with Public Law 113-187 and the January 16, 2018 Deputy Secretary of Defense memorandum.

Any attempt by unauthorized third parties to solicit, obtain, photograph, or record, or; incidents of loss/compromise of government Classified or CI, Business Sensitive, Company Proprietary information related to this or other program must be immediately reported to the contractor's FSO and Cognizant Security Office and/or the Naval Criminal Investigative Service, and the appropriate Security Division. Questions concerning these requirements shall be directed to the KO, and the COR who will forward the request to the Security Division.

9.3 CONTROLLED UNCLASSIFIED INFORMATION (CUI)

All CUI associated with this contract must follow the minimum marking requirements of DoDI 5200.48, Section 3, paragraph 3.4.a, and include the acronym "CUI" in the banner and footer of the document. In accordance with DoDI 5200.48, CUI must be safeguarded to prevent Unauthorized Disclosure (UD). CUI export controlled technical information or other scientific, technical, and engineering information must be marked with an export control warning as directed in DoDI 5230.24, DoDD 5230.25, and Part 250 of Title 32, CFR. Nonfederal information systems storing and processing CUI shall be protected per NIST SP-800-171, or subsequent revisions. All transmissions to personal email accounts (AOL, Yahoo, Hotmail, Comcast, etc.) and posting on social media websites (Facebook, Instagram, Twitter, LinkedIn, etc.) are prohibited. Destroy CUI associated with this contract by any of the following approved methods: A cross-cut shredder; a certified commercial destruction vendor; a central destruction facility; incineration; chemical decomposition; pulverizing, disintegration; or methods approved for classified destruction.

9.4 ACCESS TO FEDERAL FACILITIES

Contractors are considered visitors and access to government facilities/installations is at the discretion of the government. The government reserves the right to rescind access at any time. The Contractor, while on the installation, shall comply with all policies and requirements involving installation entry control and security.

Contractor employees shall complete all command specific in-processing requirements with the Government Contracting Activity (GCA) Security Division upon arrival to the Command, and out-process prior to their departure from the Command at the completion of the individual's performance under the contract.

The contractor shall provide a personnel roster of all prime and subcontract personnel and submit to the COR via e-mail no later than 30 business days following award of the contract. If the contract award is less than 30 days from the start date, the contractor shall submit the personnel roster in a timely manner in order to identify contractor employees. This shall be updated monthly and when changes occur.

The Common Access Card (CAC) will be used as the identification credential for on-site contractors. Contractor CAC issuance must be in response to requirements of an active contract or agreement. A contractor must possess a valid need for physical access to government facilities or logical access to government Information System (IS). The COR is the competent authority in determining whether contractor support requires CAC issuance.

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Contractor employees who have been issued CACs and/or badges, shall display the CAC at all times on outer garments, above the waist, when in DoD spaces and removed from view when not in DoD spaces. CACs or badges shall not be worn outside the installation nor used as personal identification, unless in the performance of the contract, to include official travel.

The Defense Biometric Identification System (DBIDS) card is issued only to those contractor employees in Non Sensitive (NS) positions and not requiring Information Technology (IT) access. A completed copy of the SECNAV FORM 5512/1 to the base Visitor Control Center representative is required. Access requiring less than 90 days will be issued a paper pass. Access 90 days or greater will be issued a DBIDS. A DBIDS credential may only be issued for 179 days before subject to renewal.

9.5 ACCESS TO DON INFORMATION TECHNOLOGY SYSTEMS

Contractor employees who require access to DON information systems or networks shall be required to obtain a CAC and shall be categorized as one of four levels. These access levels include: Special Sensitive (SS), Critical Sensitive (CS), Non-Critical Sensitive (NCS), and Non-Sensitive (NS) position. Both CS and SS requires privileged access to DON IS. NCS requires limited access to DON IS and access to sensitive information.

Contractor employees who require access to CUI shall be categorized no lower than NCS. NCS level requires a Tier 3 (T3) investigation or equivalent. All individuals accessing DON IS must have, at a minimum, a T3.

Contractor employees requiring privileged access shall have a favorably adjudicated Tier 5 (T5) or equivalent.

9.6 TEMPORARY ACCESS TO INFORMATION SYSTEMS

For unclassified contracts, the Commanding Officer (CO) may authorize temporary access to IS, also known as interim eligibility, to a DON or DoD unclassified computer/network at the NCS level or below upon a favorable review of the investigative questionnaire, receipt of favorable fingerprint results, and notification that an investigation has been opened by the investigating agency. The CO may authorize temporary privileged level access, when the individual holds an adjudicated Secret clearance (T3), a review of the SF-86 is favorable, favorable review of fingerprints, and a T5 investigation has been submitted.

For classified contracts, the Defense Counterintelligence and Security Agency (DCSA) is the authority to grant Temporary Access to classified material. The CO is prohibited from granting permission on a temporary basis to contractor personnel, to classified material.

Contractors shall ensure prompt return to the government of any items issued by the government (e.g. government property, government-owned keys, CAC's, and/or issued identification picture badges) when employees are terminated, separated or when the contract is at the end date to the COR.

9.7 CONTRACTOR REPORTING

The Contractor FSO/security representative shall report adverse or questionable contractor personnel information and behaviors that bring into question an individual's trustworthiness, judgment, and reliability to protect classified information or CUI. The Contractor shall notify the Commanding Officer (CO) via the ASM and KO of such information or behavior.

Upon receipt of derogatory information, the ASM will consult with the CO to determine whether a contractor's continued access to classified material, IT system, government facility or CUI is in the best interest of national security.

Reporting classified contracts: The prime contractor, and all subcontractors, are required to possess a Facility Clearance (FCL at or above the level when working on classified portions of the contract). The FSO shall immediately notify the Activity Security Manager (ASM), if changes to status of the FCL occurs to either the prime vendor or subcontractor(s). If the prime vendor fails to obtain or maintain a FCL, no subcontractor is allowed to perform duties on the contract.

9.8 BACKGROUND INVESTIGATION PROCESS FOR UNCLASSIFIED CONTRACTS

Unclassified contracts require contractor employees assigned to a NCS position, or above, must be a US citizen and have a favorably adjudicated T3 to be assigned to a NCS position. A T5 investigation is required for those contractors in a CS/SS position. Each contractor employee that does not possess an in-scope investigation commensurate with the requirements for filling an NCS position is required to submit the below to Michael DeMedici, at michael.r.demedici.civ@us.navy.mil, 717-605-4515.

1. SF-86 Questionnaire for National Security Positions (or equivalent OPM investigative product)
2. Electronic fingerprint submission (or two FD-258, used when electronic fingerprint submission is unavailable. Fingerprint cards will be uploaded in SWFT and submitted electronically).
3. Original Signed Release Statements
4. Additional documents may be required based upon the SF-86 submission to mitigate concerns.

Failure to provide the required documentation at least 30 days prior to the individual's start date, unless award is less than 30 days to start date, may result in delaying the individual's start date.

Security issues identified by the ASM may render the contractor employee ineligible (not suitable) for the assignment. An unfavorable determination made by the Command is final and does not relieve the contractor from meeting any contractual obligation under the contract. The ASM will forward the required forms to DCSA for processing.

9.9 CYBERSECURITY MATURITY MODEL CERTIFICATION (CMMC)

The Program Office has determined CMMC compliance is required effective 10 November 2025. The minimum CMMC assessment requirement for this tasking is CMMC Level 2 (Self).

The Federal Register Notice for the final DFARS rule, effective 10 November 2025, published at 90 FR 43560 can be found at <https://www.federalregister.gov/documents/2025/09/10/2025-17359/defense-federal-acquisition-regulation-supplement-assessing-contractorimplementation-of>.

10.0 SAFETY

The Contractor shall comply with the latest applicable federal and state laws, regulations and management plans and requirements regarding occupational safety and health. In the event that safety laws, regulations or requirements change during the term of the task order, the Contractor is required to comply as such laws come into effect. While working on government facilities the Contractor shall follow all regulations and guidance for workplace safety and wear required personal protection equipment.

11.0 NOTIFICATION OF PERSONNEL CHANGES

The Contractor shall notify the COR and Contracting Officer and local Security Office/Pass & ID of any change in access requirements for its employees no later than 24 hours after any personnel change occurs. This includes name changes, resignations, terminations, and transfers. The Contractor shall provide the following information: full name, social security number, effective date, and reason for change.

12.0 NON-DISCLOSURE AGREEMENT

The Contractor shall sign and return to the Contracting Officer, one version of the Non-Disclosure Statement (NDA), Appendix B on behalf of the company, and shall also ensure that all staff assigned to, including all subcontractors and consultants, performing work on this task order execute and adhere to the terms of the non-disclosure statement, protecting the procurement sensitive information of the Government and the proprietary information of other Contractors. Assignment of staff who have not executed this statement or failure to adhere to this statement shall constitute default on the part of the Contractor. Individual Contractor employee NDA's shall be made available to the Government Contracting Officer or COR upon request.

13.0 CONFIDENTIALITY

Work on this task order may require some access to Privacy Act Information. Such access shall require adherence to the Privacy Act, Title 5 of the U.S. Code, Section 552a and applicable agency rules and regulations. Contractor personnel shall not divulge or release data or information developed or obtained in performance of this task order until made public by the Government, except to authorized Government personnel. The Contractor shall not use, disclose, or reproduce proprietary data other than as required in the performance of this task order.

Requirements

NAVSEALOGCEN is procuring Readiness Based Sparing (RBS) Modeling services to provide support for executing its mission to provide life-cycle logistics support solutions for US Naval systems.

Additional Regulation or Supplemental Clauses Incorporated by Full Text

C-202-H001 ADDITIONAL DEFINITIONS--BASIC

(Oct 2018)

(a) Department means the Department of the Navy.

(b) Commander, Naval Sea Systems Command means the Commander of the Naval Sea Systems Command of the Department of the Navy or his duly appointed successor.

(c) References to The Federal Acquisition Regulation (FAR) All references to the FAR in this contract shall be deemed to also reference the appropriate sections of the Defense FAR Supplement (DFARS), unless clearly indicated otherwise.

(d) National Stock Numbers Whenever the term Federal Item Identification Number and its acronym FIIN or the term Federal Stock Number and its acronym FSN appear in the contract, order or their cited specifications and standards, the terms and acronyms shall be interpreted as National Item Identification Number (NIIN) and National Stock Number (NSN) respectively which shall be defined as follows:

(1) National Item Identification Number (NIIN). The number assigned to each approved Item Identification under the Federal Cataloging Program. It consists of nine numeric characters, the first two of which are the National Codification Bureau (NCB) Code. The remaining positions consist of a seven digit nonsignificant number.

(2) National Stock Number (NSN). The National Stock Number (NSN) for an item of supply consists of the applicable four-position Federal Supply Class (FSC) plus the applicable nine-position NIIN assigned to the item of supply.

(End of Text)

C-204-H001 USE OF NAVY SUPPORT CONTRACTORS FOR OFFICIAL CONTRACT FILES (Oct 2018)

(a) NAVSEA may use a file room management support contractor, hereinafter referred to as "the support contractor", to manage its file room, in which all official contract files, including the official file supporting this procurement, are retained. These official files may contain information that is considered a trade secret, proprietary, business sensitive or otherwise protected pursuant to law or regulation, hereinafter referred to as "protected information". File room management services consist of any of the following: secretarial or clerical support; data entry; document reproduction, scanning, imaging, or destruction; operation, management, or maintenance of paper-based or electronic mail rooms, file rooms, or libraries; and supervision in connection with functions listed herein.

(b) The cognizant Contracting Officer will ensure that any NAVSEA contract under which these file room management services are acquired will contain a requirement that:

(1) The support contractor not disclose any information;

(2) Individual employees are to be instructed by the support contractor regarding the sensitivity of the official contract files;

(3) The support contractor performing these services be barred from providing any other supplies and/or services, or competing to do so, to NAVSEA for the period of performance of its contract and for an additional three years thereafter unless otherwise provided by law or regulation; and,

(4) In addition to any other rights the contractor may have, it is a third party beneficiary who has the right of direct action against the support contractor, or any person to whom the support contractor has released or disclosed protected information, for the unauthorized duplication, release, or disclosure of such protected information.

(c) Execution of this contract by the contractor is considered consent to NAVSEA's permitting access to any information, irrespective of restrictive markings or the nature of the information submitted, by its file room management support contractor for the limited purpose of executing its file room support contract responsibilities.

(d) NAVSEA may, without further notice, enter into contracts with other contractors for these services. Contractors should enter into separate non-disclosure agreements with the file room contractor. Contact the Procuring Contracting Officer for contractor specifics. However, any such agreement will not be considered a prerequisite before information submitted is stored in the file room or otherwise encumber the government.

(End of Text)

C-211-H016 SPECIFICATIONS AND STANDARDS (NAVSEA) (OCT 2018) (Oct 2018)

(a) Definitions.

(i) A "zero-tier reference" is a specification, standard, or drawing that is cited in the contract (including its attachments).

(ii) A "first-tier reference" is either: (1) a specification, standard, or drawing cited in a zero-tier reference, or (2) a specification cited in a first-tier drawing.

(b) Requirements. All zero-tier and first-tier references, as defined above, are mandatory for use. All lower tier references shall be used for guidance only unless specifically identified below.

(End of Text)

C-211-H017 UPDATING SPECIFICATIONS AND STANDARDS (NAVSEA) (DEC 2018)

(Dec 2018)

The contractor may request that this contract be updated to include the current version of the applicable specification or standard if the update does not affect the form, fit or function of any deliverable item or increase the cost/price of the item to the Government. The contractor should submit update requests to the Procuring Contracting Officer with copies to the Administrative Contracting Officer and cognizant program office representative for approval. The contractor shall perform the contract in accordance with the existing specifications and standards until notified of approval/disapproval of its request to update by the Procuring Contracting Officer. Any approved alternate specifications or standards will be incorporated into the contract.

(End of Text)

C-211-H018 APPROVAL BY THE GOVERNMENT (NAVSEA) (JAN 2019)

(Jan 2019)

Approval by the Government as required under this contract and applicable specifications shall not relieve the Contractor of its obligation to comply with the specifications and with all other requirements of the contract, nor shall it impose upon the Government any liability it would not have had in the absence of such approval.

(End of Text)

C-215-H002 CONTRACTOR PROPOSAL (NAVSEA) (OCT 2018)

(Oct 2018)

(a) Performance of this contract by the Contractor shall be conducted and performed in accordance with detailed obligations to which the Contractor committed itself in Proposal * dated * in response to NAVSEA Solicitation No. N6572626R3000.

(b) The technical volume(s) of the Contractor's proposal is(are) hereby incorporated by reference and made subject to the "Order of Precedence" (FAR 52.215-8) clause of this contract. Under the "Order of Precedence" clause, the technical volume(s) of the Contractor's proposal referenced herein is (are) hereby designated as item (f) of the clause, following "the specifications" in the order of precedence.

***To be completed at award**

(End of Text)

C-227-H009 ACCESS TO DATA OR COMPUTER SOFTWARE WITH RESTRICTIVE MARKINGS (NAVSEA) (JAN 2019)

(Jan 2019)

(a) Performance under this contract may require that the Contractor have access to technical data, computer software, or other sensitive data of another party that contains restrictive markings. If access to such data or software is required or to be provided, the Contractor shall enter into a written agreement with such party prior to gaining access to such data or software. The agreement shall address, at a minimum, (1) access to, and use of, the restrictively marked data or software exclusively for the purposes of performance of the work required by this contract, and (2) safeguards to protect such data or software from unauthorized use or disclosure for so long as the data or software remains properly restrictively marked. In addition, the agreement shall not impose any limitation upon the Government or its employees with respect to such data or software. A copy of the executed agreement shall be provided to the Contracting Officer. The Government may unilaterally modify the contract to list those third parties with which the Contractor has agreement(s).

(b) The Contractor agrees to: (1) indoctrinate its personnel who will have access to the data or software as to the restrictions under which access is granted; (2) not disclose the data or software to another party or other Contractor personnel except as authorized by the Contracting Officer; (3) not engage in any other action, venture, or employment wherein this information will be used, other than under this contract, in any manner inconsistent with this requirement; (4) not disclose the data or software to any other party, including, but not limited to, joint venturer, affiliate, successor, or assign of the Contractor; and (5) reproduce the restrictive stamp, marking, or legend on each use of the data or software whether in whole or in part.

- (c) These restrictions on use and disclosure of the data and software also apply to information received from the Government through any means to which the Contractor has access in the performance of this contract that contains restrictive markings.
- (d) The Contractor agrees that it will promptly notify the Contracting Officer of any attempt to gain access to any information with restrictive markings. Such notification shall include the name and organization of the individual, company, or Government representative seeking access to such information.
- (e) The Contractor shall include this requirement in subcontracts of any tier which involve access to information covered by paragraph (a), substituting "subcontractor" for "Contractor" where appropriate.
- (f) Compliance with this requirement is a material requirement of this contract.

(End of Text)

C-227-H003 PROTECTION OF NAVAL NUCLEAR PROPULSION INFORMATION (NAVSEA) (Oct 2018)
(OCT 2018)

- (a) During the performance of this contract Naval Nuclear Propulsion Information (NNPI) may be developed or used. Naval Nuclear Propulsion Information is defined as that information and/or hardware concerning the design, arrangement, development, manufacturing, testing, operation, administration, training, maintenance, and repair of the propulsion plants of Naval Nuclear Powered Ships including the associated shipboard and shore-based nuclear support facilities. In accordance with OPNAVINST N9210.3 of 7 June 2010, appropriate safeguards must be proposed by the Contractor and approved by the NAVSEA Contracting Officer for Security Matters for the safeguarding from actual, potential or inadvertent release by the Contractor, or any subcontractor, of any Naval Nuclear Propulsion Information in any form, classified or unclassified. Such safeguards shall ensure that only Governmental and Contractor parties, including subcontractors, that have an established need-to-know, have access in order to perform work under this contract, and then only under conditions which assure that the information is properly protected. Access by foreign nationals or immigrant aliens is not permitted. A foreign national or immigrant alien is defined as a person not a United States citizen or a United States National. United States citizens representing a foreign government, foreign private interest or other foreign nationals, are considered to be foreign nationals for industrial security purposes and the purpose of this restriction. In addition, any and all issue or release of such information beyond such necessary parties, whether or not ordered through an administrative or judicial tribunal, shall be brought to the attention of the NAVSEA Contracting Officer for Security Matters.
- (b) The NAVSEA Contracting Officer for Security Matters shall be immediately notified of any litigation, subpoenas, or requests which either seek or may result in the release of Naval Nuclear Propulsion Information.
- (c) In the event that a court or administrative order makes immediate review by the NAVSEA Contracting Officer for Security Matters impractical, the Contractor agrees to take all necessary steps to notify the court or administrative body of the Navy's interest in controlling the release of such information through review and concurrence in any release.
- (d) The Contracting Agency reserves the right to audit Contractor and subcontractor facilities for compliance with the above restrictions.
- (e) Exceptions to these requirements may only be obtained with prior approval from the Commander, Naval Sea Systems Command (Contact SEA 00P3).

(End of Text)

C-227-H004 TRANSMISSION ABROAD OF EQUIPMENT OR TECHNICAL DATA RELATING (Oct 2018)
TO THE NUCLEAR PROPULSION OF NAVAL SHIPS (NAVSEA) (OCT 2018)

- (a) The supplies specified to be delivered under this contract relate to the nuclear propulsion of naval ships.
- (b) Equipment and technical data defined as Naval Nuclear Propulsion Information (NNPI) under OPNAVINST N9210.3 of 7 June 2010 shall not be disclosed to foreign nationals or immigrant aliens.
- (c) For other than equipment and technical data defined as NNPI in paragraph (b) above, except with the prior written consent of the Contracting Officer, or his designated representative, the Contractor shall not, at any time during or after the performance of this contract, transmit or authorize the transmittal of any equipment or technical data, as defined in paragraph (d) below, (1)

outside the United States, or (2) irrespective of location, (i) to any foreign national, not working on this contract or any subcontract hereunder (ii) to any foreign organization (including foreign subsidiaries and affiliates of the Contractor), (iii) to any foreign Government, or (iv) to any international organization.

(d) As used in this requirement, the following terms shall have the following definitions:

(1) "United States" means the States, the District of Columbia, Puerto Rico, American Samoa, the Virgin Islands, Guam, and any areas subject to the complete sovereignty of the United States;

(2) "equipment" means all supplies of the kind specified to be delivered under this contract, all component parts thereof, and all models of such supplies and component parts; but "equipment" does not include standard commercial supplies and component parts, and models thereof;

(3) "technical data" means all professional, scientific, or technical information and data produced or prepared for the performance of this contract, or on or for the operation, maintenance, evaluation, or testing of any contract item, whether or not the information and data were specified to be delivered under this contract including, without limitation, all writings, sound recordings, pictorial reproductions, and drawings or other graphical representations; but "technical data" does not include such information and data on standard commercial supplies and component parts to the extent that the information and data do not relate to the use, operation, maintenance, evaluation and testing of such supplies and component parts in or in connection with any item, or component parts thereof, specified to be delivered under this contract.

(e) The Contractor agrees to insert in all subcontracts under this contract provisions which shall conform substantially to the language of this requirement, including this paragraph (e).

(f) Notwithstanding any other provisions of this requirement, this requirement shall not apply (1) where the transmittal or authorization for the transmittal of equipment or technical data is to be made pursuant to a contract or agreement to which the United States is a party; and (2) where the transmittal is to be of equipment or technical data which the Contracting Officer, or his designated representative, has declared in writing to the Contractor to be thereafter exempt from this requirement.

(End of Text)

C-227-H005 UNLIMITED RIGHTS IN TECHNICAL DATA-NUCLEAR PROPULSION PLANT SYSTEMS (NAVSEA) (OCT 2018) (Oct 2018)

(a) Pursuant to subparagraph (b)(1) of the clauses entitled "Rights In Technical Data--Noncommercial Items" (DFARS 252.2277013) and "Rights In Noncommercial Computer Software And Noncommercial Computer Software Documentation" (DFARS 252.227-7014), it is agreed that all technical data pertaining to nuclear propulsion plant systems under the technical cognizance of the Navy Nuclear Propulsion Directorate, Naval Sea Systems Command (NAVSEA 08), which is specified to be delivered pursuant to this contract, shall be delivered with unlimited rights, provided, however, that nothing in the clause shall be deemed to require any subcontractor of any tier under this contract to deliver or furnish with unlimited rights any technical data which it is entitled to deliver with other than unlimited rights pursuant to said "Rights In Technical Data--Noncommercial Items" Or "Rights In Noncommercial Computer Software And Noncommercial Computer Software Documentation" clauses.

(b) It is further agreed that promptly after delivery of the vessel, or after any termination of all work under this contract, the Contractor shall submit a letter report to the Navy Nuclear Propulsion Directorate, Naval Sea Systems Command (NAVSEA 08) listing and providing a brief description of all items of technical data pertaining to the reactor plant(s) of the vessel(s) developed or prepared under this contract which were not specified to be delivered pursuant to this contract. The Contractor shall furnish in the Contractor's format and at the cost of reproduction, with unlimited rights, copies of items of technical data so reported or which should have been reported, as the Government may require in writing from time to time and at any time. However, nothing in this requirement shall require the Contractor to retain any item of such technical data beyond the period provided for in this contract, including the specifications, and other documents incorporated by reference, applicable to the item or type of technical data involved.

(End of Text)

C-227-H006 DATA REQUIREMENTS (NAVSEA) (OCT 2018) (Oct 2018)

The data to be furnished hereunder shall be prepared in accordance with the Contract Data Requirements List, DD Form 1423, Exhibit(s) A001, A002, A003, A004, A005, and A006 attached hereto.

(End of Text)

**C-237-W001 ELECTRONIC COST REPORTING AND FINANCIAL TRACKING (eCRAFT)
SYSTEM REPORTING (NAVSEA) (MAY 2022)**

(May 2022)

(a) The Contractor agrees to upload the Contractor's Funds and Man-hour Expenditure Reports in the Electronic Cost Reporting and Financial Tracking (eCRAFT) System and submit the Contract Status Report on the day and for the same timeframe the contractor submits an invoice into the Wide Area Workflow (WAWF) module on the Procurement Integrated Enterprise Environment (PIEE) system. Compliance with this requirement is a material requirement of this contract. Failure to comply with this requirement may result in contract termination.

(b) The Contract Status Report indicates the progress of work and the status of the program and of all assigned tasks. It informs the Government of existing or potential problem areas.

(c) The Contractor's Fund and Man-hour Expenditure Report reports contractor expenditures for labor, materials, travel, subcontractor usage, and other contract charges.

(1) Access: eCRAFT: Reports are uploaded through the eCRAFT System Periodic Report Utility (EPRU). The EPRU spreadsheet and user manual can be obtained at: <https://www.navsea.navy.mil/Home/Warfare-Centers/NUWC-Newport/Partnerships/Commercial-Contracts/Information-eCraft/> under eCRAFT information. The link for eCRAFT report submission is: https://www.pdrep.csd.disa.mil/pdrep_files/other/ecraft.htm. If you have problems uploading reports, please see the Frequently Asked Questions at the site address above.

(2) Submission and Acceptance/Rejection: The contractor shall submit their reports on the same day and for the same timeframe the contractor submits an invoice in WAWF. The amounts shall be the same. eCRAFT acceptance/rejection will be indicated by e-mail notification from eCRAFT.

(End of Text)

C-237-H002 SUBSTITUTION OF KEY PERSONNEL (NAVSEA) (OCT 2018)

(Oct 2018)

(a) The Contractor agrees that a partial basis for award of this contract is the list of key personnel proposed. Accordingly, the Contractor agrees to assign to this contract those key persons whose resumes were submitted with the proposal necessary to fulfill the requirements of the contract. No substitution shall be made without prior notification to and concurrence of the Contracting Officer in accordance with this requirement. Substitution shall include, but not be limited to, subdividing hours of any key personnel and assigning or allocating those hours to another individual not approved as key personnel.

(b) All proposed substitutes shall have qualifications equal to or higher than the qualifications of the person to be replaced. The Contracting Officer shall be notified in writing of any proposed substitution at least forty-five (45) days, or ninety (90) days if a security clearance is to be obtained, in advance of the proposed substitution. Such notification shall include: (1) an explanation of the circumstances necessitating the substitution; (2) a complete resume of the proposed substitute; (3) an explanation as to why the proposed substitute is considered to have equal or better qualifications than the person being replaced; (4) payroll record of the proposed replacement; and (5) any other information requested by the Contracting Officer to enable him/her to judge whether or not the Contractor is maintaining the same high quality of personnel that provided the partial basis for award.

(c) Key personnel are identified in an attachment in Section J.

(End of Text)

C-242-H001 EXPEDITING CONTRACT CLOSEOUT (NAVSEA) (OCT 2018)

(Oct 2018)

(a) As part of the negotiated fixed price or total estimated amount of this contract, both the Government and the Contractor have agreed to waive any entitlement that otherwise might accrue to either party in any residual dollar amount of \$1,000 or less at the time of final contract closeout. The term "residual dollar amount" shall include all money that would otherwise be owed to either party at the end of the contract, except that, amounts connected in any way with taxation, allegations of fraud and/or antitrust violations shall be excluded. For purposes of determining residual dollar amounts, offsets of money owed by one party against money that would otherwise be paid by that party may be considered to the extent permitted by law.

(b) This agreement to waive entitlement to residual dollar amounts has been considered by both parties. It is agreed that the administrative costs for either party associated with collecting such small dollar amounts could exceed the amount to be recovered.

(End of Text)

C-242-H002 POST AWARD MEETING (NAVSEA) (OCT 2018)

(Oct 2018)

(a) A post-award meeting with the successful offeror will be conducted within [*] days after award of the [contract / task order]. The meeting will be held at the address below:

Location/Address: [*]

(b) The contractor will be given [*] working days notice prior to the date of the meeting by the Contracting Officer.

(c) The requirement for a post-award meeting shall in no event constitute grounds for excusable delay by the contractor in performance of any provisions in the [contract / task order].

(d) The post-award meeting will include, but is not limited to, the establishment of work level points of contact, determining the administration strategy, roles and responsibilities, and ensure prompt payment and close out. Specific topics shall be mutually agreed to prior to the meeting.

[*] To be specified at [contract / task order] award

(End of Text)

C-242-H003 TECHNICAL INSTRUCTIONS (NAVSEA) (OCT 2018)

(Oct 2018)

(a) Performance of the work hereunder may be subject to written technical instructions signed by the Contracting Officer and the Contracting Officer's Representative specified in Section G of this contract. As used herein, technical instructions are defined to include the following:

(1) Directions to the Contractor which suggest pursuit of certain lines of inquiry, shift work emphasis, fill in details or otherwise serve to accomplish the contractual statement of work.

(2) Guidelines to the Contractor which assist in the interpretation of drawings, specifications or technical portions of work description.

(b) Technical instructions must be within the general scope of work stated in the contract. Technical instructions may not be used to: (1) assign additional work under the contract; (2) direct a change as defined in the "CHANGES" clause of this contract; (3) increase or decrease the contract price or estimated contract amount (including fee), as applicable, the level of effort, or the time required for contract performance; or (4) change any of the terms, conditions or specifications of the contract.

(c) If, in the opinion of the Contractor, any technical instruction calls for effort outside the scope of the contract or is inconsistent with this requirement, the Contractor shall notify the Contracting Officer in writing within ten (10) working days after the receipt of any such instruction. The Contractor shall not proceed with the work affected by the technical instruction unless and until the Contractor is notified by the Contracting Officer that the technical instruction is within the scope of this contract.

(d) Nothing in the foregoing paragraph shall be construed to excuse the Contractor from performing that portion of the contractual work statement which is not affected by the disputed technical instruction.

(End of Text)

C-244-H001 SUBCONTRACTING OF NUCLEAR ENGINEERING EFFORT (NAVSEA) (OCT 2018)

(Oct 2018)

(a) The Contractor and the Navy intend that all nuclear engineering effort under this contract be performed by employees of the Contractor or persons under the supervision of employees of the Contractor at the Contractor's facilities or at any alternate site. If, however, the Contractor considers that subcontracting some nuclear engineering effort, which will not be under the supervision of employees of the Contractor at the Contractor's facilities or at any alternate site, is necessary to meet the Contractor's contractual requirements, then notwithstanding and in addition to any other requirement of this contract, the Contractor shall submit a written request for technical approval to the Navy Nuclear Propulsion Directorate (NAVSEA 08). The request to subcontract nuclear engineering effort shall state the reasons why the subcontracting is necessary, why the effort

cannot be performed by the Contractor's personnel or persons under the supervision of employees of the Contractor at the Contractor's facilities or at any alternate site, the expected number of man/hours, cost and nature of the subcontracted effort, period of performance, and the name and qualifications of the vendor to perform the subcontracted effort. NAVSEA 08 shall approve or disapprove the request in writing. The Contractor agrees not to subcontract any nuclear engineering effort which will not be under the supervision of employees of the Contractor at the Contractor's facilities or at any alternate site without obtaining the express written technical approval of NAVSEA 08.

(b) For the purpose of this requirement, the term "nuclear engineering effort" includes engineering, drafting, and related technical support effort under NAVSEA 08 technical cognizance.

(End of Text)

C-244-H002 SUBCONTRACTORS/CONSULTANTS (NAVSEA) (FEB 2023)

(Feb 2023)

In addition to the information required by FAR 52.244-2(e) of the contract, when consent to subcontract is required per FAR 52.244-2, the contractor shall also include the following information in requests to add subcontractors or consultants during performance:

- (1) Impact on subcontracting goals,
- (2) Impact on providing support at the contracted value,
- (3) IF SEAPORT TASK ORDER - The results of negotiations to incorporate fee rate caps no higher than the lower of (i) SeaPort NXG fee rate caps for the prime contractor, or in the case where the proposed subcontractor is also a SeaPort NXG prime, (ii) fee rate caps that are no higher than the subcontractor's prime SeaPort NXG contract.

(End of Text)

C-245-H005 INFORMATION AND DATA FURNISHED BY THE GOVERNMENT--ALTERNATE I (NAVSEA) (MAY 2019)

(May 2019)

(a) Contract Specifications, Drawings and Data. The Government will furnish, if not included as an attachment to the contract, any unique contract specifications or other design or alteration data cited or referenced in Section C.

(b) Government Furnished Information (GFI). GFI is defined as that information essential for the installation, test, operation, and interface support of all Government Furnished Material identified in an attachment in Section J. The Government shall furnish only the GFI identified in an attachment in Section J. The GFI furnished to the contractor need not be in any particular format. Further, the Government reserves the right to revise the listing of GFI as follows:

- (1) The Contracting Officer may at any time by written order:
 - (i) delete, supersede, or revise, in whole or in part, data identified in an attachment in Section J; or
 - (ii) add items of data or information to the attachment identified in Section J; or
 - (iii) establish or revise due dates for items of data or information in the attachment identified in Section J.
- (2) If any action taken by the Contracting Officer pursuant to subparagraph (1) immediately above causes an increase or decrease in the costs of, or the time required for, performance of any part of the work under this contract, the contractor may be entitled to an equitable adjustment in the contract amount and delivery schedule in accordance with the procedures provided for in the "CHANGES" clause of this contract.

(c) Except for the Government information and data specified by paragraphs (a) and (b) above, the Government will not be obligated to furnish the Contractor any specification, standard, drawing, technical documentation, or other publication, notwithstanding anything to the contrary in the contract specifications, the GFI identified in an attachment in Section J, the clause of this contract entitled "Government Property" (FAR 52.245-1) or "Government Property Installation Operation Services" (FAR 52.245-2), as applicable, or any other term or condition of this contract. Such referenced documentation may be obtained:

- (1) From the ASSIST database via the internet at <https://assist.dla.mil/online/start/>; or
- (2) By submitting a request to the

Department of Defense Single Stock Point (DoDSSP)

Building 4, Section D

700 Robbins Avenue

Philadelphia, Pennsylvania 19111-5094

Telephone (215) 697-6396

Facsimile (215) 697-9398

Commercial specifications and standards, which may be referenced in the contract specification or any sub-tier specification or standard, are not available from Government sources and should be obtained from the publishers.

(End of Text)

Section D - Packaging and Marking

Additional Regulation or Supplemental Clauses Incorporated by Full Text

D-211-H001 PACKAGING OF DATA (NAVSEA) (FEB 2022)

(Feb 2022)

Data to be delivered by Integrated Digital Environment (IDE) or other electronic media shall be as specified in the contract.

All unclassified data to be shipped shall be prepared for shipment in accordance with best commercial practice.

Classified reports, data, and documentation shall be prepared for shipment in accordance with National Industrial Security Program Operating Manual (NISPOM), 32 CFR Part 117.

(End of Text)

D-211-H002 MARKING OF REPORTS (NAVSEA) (OCT 2018)

(Oct 2018)

All reports delivered by the Contractor to the Government under this contract shall prominently show on the cover of the report:

(1) name and business address of the Contractor

(2) contract number

(3) sponsor: _____ *

(Name of Individual Sponsor)

_____ *

(Name of Requiring Activity)

_____ *

(City and State)

***To be completed at award**

(End of Text)

Section E - Inspection and Acceptance

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.246-5	Inspection of Services-Cost-Reimbursement.	Apr 1984		

Additional Regulation or Supplemental Clauses Incorporated by Full Text

E-246-H013 INSPECTION AND ACCEPTANCE OF DATA (NAVSEA) (OCT 2018) (Oct 2018)

Inspection and acceptance of all data shall be as specified on the attached Contract Data Requirements List(s), DD Form 1423.

(End of Text)

E-246-H014 INSPECTION AND ACCEPTANCE OF ENGINEERING SERVICES (NAVSEA) (OCT 2018) (Oct 2018)

Item(s) 6000,7000,8000,6100,7100,8100,6200,7200,8200,6300,7300,8300,6400,7400,8400 - Inspection and acceptance shall be made by the Contracting Officer's Representative (COR) or a designated representative of the Government.

(End of Text)

Section F - Deliveries or Performance

Line Item	Delivery Schedule	Quantity	Address and POC
6000	Period of Performance From 01 Jun 2026 To 31 May 2027	34,620 Labor Hours	
Option Line Item 6100	Period of Performance From 01 Jun 2027 To 31 May 2028	47,700 Labor Hours	
Option Line Item 6200	Period of Performance From 01 Jun 2028 To 31 May 2029	56,420 Labor Hours	
Option Line Item 6300	Period of Performance From 01 Jun 2029 To 31 May 2030	56,420 Labor Hours	
Option Line Item 6400	Period of Performance From 01 Jun 2030 To 31 May 2031	56,420 Labor Hours	
7000	Period of Performance From 01 Jun 2026 To 31 May 2027	1 Lot	
Option Line Item 7100	Period of Performance From 01 Jun 2027 To 31 May 2028	1 Lot	
Option Line Item 7200	Period of Performance From 01 Jun 2028 To 31 May 2029	1 Lot	
Option Line Item 7300	Period of Performance From 01 Jun 2029 To 31 May 2030	1 Lot	
	Period of Performance	1 Lot	

Option Line Item 7400	From 01 Jun 2030 To 31 May 2031		
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FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.242-15	Stop-Work Order. (Alternate I)	Aug 1989	Alternate I	Apr 1984

Additional Regulation or Supplemental Clauses Incorporated by Full Text

F-247-H001 DELIVERY OF DATA (NAVSEA) (OCT 2018)

(Oct 2018)

All data to be furnished under this contract shall be delivered prepaid to the destination(s) and at the time(s) specified on the Contract Data Requirements List(s), DD Form 1423.

(End of Text)

Section G - Contract Administration Data

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7002	Payment for Contract Line or Subline Items Not Separately Priced.	Apr 2020		
252.204-7006	Billing Instructions-Cost Vouchers	May 2023		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

=====
(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

=====

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	<u>HQ0338</u>
Issue By DoDAAC	<u>N65726</u>
Admin DoDAAC	<u>N65726</u>
Inspect By DoDAAC	==
Ship To Code	==
Ship From Code	==
Mark For Code	==
Service Approver (DoDAAC)	<u>N65726</u>
Service Acceptor (DoDAAC)	==
Accept at Other DoDAAC	==
LPO DoDAAC	==
DCAA Auditor DoDAAC	<u>TBD after award</u>
Other DoDAAC(s)	==

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(End of Text)

G-242-H001 GOVERNMENT CONTRACT ADMINISTRATION POINTS-OF-CONTACT AND RESPONSIBILITIES (NAVSEA) (OCT 2023)

- (a) The Government reserves the right to administratively substitute any of the points of contact listed below at any time.
- (b) The contracting officer is the only person authorized to change this contract or orders issued thereunder. The Contractor shall not comply with any order, direction or request of Government personnel - that would constitute a change - unless it is issued in writing and signed by the Contracting Officer or is pursuant to specific authority otherwise included as part of this contract. If, in the opinion of the contractor, an effort outside the existing scope of this contract is requested, the contractor shall promptly comply with the Notification of Changes clause of this contract.

(c) The points of contact are as follows:

(i) The Procuring Contracting Officer (PCO) is:

Name: **Michael VanDeMark**
Address:
5450 Carlisle Pike, Suite 307
Mechanicsburg, PA 17050-2411
Phone: **717-605-2239**
E-mail: **michael.t.vandemark.civ@us.navy.mil**

(ii) The Contract Specialist is:

Name: **Marisa Wirfel**
Address:
5450 Carlisle Pike, Suite 307
Mechanicsburg, PA 17050-2411
Phone: **717-605-6176**
E-mail: **marisa.n.wirfel.civ@us.navy.mil**

(iii) The Administrative Contracting Officer (ACO) is:

Name: **Same as PCO**

(d) The Contracting Officer's Representative (COR) is the contracting officer's appointed representative for technical matters. The COR is not a contracting officer and does not have the authority to direct the accomplishment of effort which is beyond the scope of the contract or to otherwise change any contract requirements. An informational copy of the COR appointment letter, which provides a delineation of COR authority and responsibilities, will be provided upon award of this contract.

The Contracting Officer's Representative (COR) is:

Name: [*]
Address:
[*Street]
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

(e) The Alternate Contracting Officer's Representative (ACOR) is responsible for COR responsibilities and functions in the event that the COR is unavailable due to leave, illness, or other official business. The ACOR is appointed by the contracting officer; a copy of the ACOR appointment will be provided upon award of this contract.

The Alternate Contracting Officer's Representative (ACOR) is:

Name: [*]
Address:
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

(f) The Contractor's point of contact for performance under this contract is:

Name: [*]
Address:
[*Street]
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

[*] To be completed at contract award

(End of Text)

G-242-H002 HOURS OF OPERATION AND HOLIDAY SCHEDULE (NAVSEA) (JUL 2021)

(Jul 2021)

(a) The policy of this activity is to schedule periods of reduced operations or shutdown during holiday periods. Deliveries will not be accepted on Saturdays, Sundays or Holidays except as specifically requested by the **Naval Sea Logistics Center**. All goods or services attempted to be delivered on a Saturday, Sunday or Holiday without specific instructions from the Contracting Officer or his duly appointed representative will be returned to the contractor at the contractor's expense with no cost or liability to the U.S. Government.

(b) The federal Government observes public Holidays that have been established under 5 U.S.C. 6103. The actual date of observance for each of the holidays, for a specific calendar year, may be obtained from the OPM website at OPM.GOV or by using the following direct link: <https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/>.

(c) Delayed Opening, Early Dismissal and Closure of Government Facilities. When a Government facility has a delayed opening, is closed or Federal employees are dismissed early (due to severe weather, security threat, security exercise, or a facility related problem) that prevents personnel from working, onsite contractor personnel regularly assigned to work at that facility shall follow the same reporting and/or departure directions given to Government personnel. The contractor shall not direct charge to the contract for such time off, but shall follow parent company policies regarding taking leave (administrative or other). Non-essential contractor personnel, who are not required to remain at or report to the facility, shall follow their parent company policy regarding whether they should go/stay home or report to another company facility. Subsequent to an early dismissal, delayed opening, or during periods of inclement weather, onsite contractors should monitor the OPM website as well as radio and television announcements before departing for work to determine if the facility is closed or operating on a delayed arrival basis.

(d) When Federal employees are excused from work due to a holiday or a special event (that is unrelated to severe weather, a security threat, or a facility related problem), on site contractors shall continue working established work hours or take leave in accordance with parent company policy. Those contractor employees who take leave shall not direct charge the non-working hours to the contract. Contractors are responsible for predetermining and disclosing their charging practices for early dismissal, delayed openings, or closings in accordance with the FAR, applicable cost accounting standards, and the company's established policy and procedures. Contractors shall follow their disclosed charging practices during the contract period of performance, and shall not follow any verbal directions to the contrary. The Contracting Officer will make the determination of cost allowability for time lost due to facility closure in accordance with FAR, applicable Cost Accounting Standards, and the Contractor's established accounting policy and procedures.

(e) If you intend to visit the Contracts Office, it is advised that you call for an appointment at least 24 hours in advance.

(End of Text)

Section H - Special Contract Requirements

Additional Regulation or Supplemental Clauses Incorporated by Full Text

H-209-H003 REQUIRED DISCLOSURE OF ORGANIZATIONAL CONFLICT OF INTEREST (NAVSEA) (NOV 2022) (Nov 2022)

- (a) "Organizational Conflict of Interest" means that because of other activities or relationships with other persons, a person is unable or potentially unable to render impartial assistance or advice to the Government, or the person's objectivity in performing the contract work is or might be otherwise impaired, or a person has an unfair competitive advantage. "Person" as used herein includes Corporations, Partnerships, Joint Ventures, and other business enterprises.
- (b) The Contractor warrants that to the best of its knowledge and belief, and except as otherwise set forth in the contract, at the time of execution of this contract the Contractor does not have any organizational conflict of interest(s) as defined in paragraph (a).
- (c) The Contractor agrees that, if after award, it discovers an actual or potential organizational conflict of interest, it shall make immediate and full disclosure in writing to the Contracting Officer. The notification shall include a description of the actual or potential organizational conflict of interest, a description of the action which the Contractor has taken or proposes to take to avoid, mitigate, or neutralize the conflict, and any other relevant information that would assist the Contracting Officer in making a determination on this matter. Notwithstanding this notification, the Government may terminate the contract for the convenience of the Government if determined to be in the best interest of the Government.
- (d) Notwithstanding paragraph (c) above, if the Contractor was aware, or should have been aware, of an organizational conflict of interest prior to the award of this contract or becomes, or should become, aware of an organizational conflict of interest after award of this contract and does not make an immediate and full disclosure in writing to the Contracting Officer, the Government may terminate this contract for default.
- (e) If the Contractor fails to take action required by this requirement, or required by the Contracting Officer upon receipt of the Contractor's disclosure required by paragraph (c), the Government may terminate this contract for default.
- (f) The Contracting Officer's decision as to the existence or nonexistence of an actual or potential organizational conflict of interest shall be final.
- (g) The Contractor shall promptly notify the Contracting Officer, in writing, if it has been tasked to evaluate or advise the Government concerning its own products or activities, those of its subcontractors, those of one of its prime contractors (to which the contractor is a subcontractor), or those of a competitor in order to ensure proper safeguards exist to guarantee objectivity and to protect the Government's interest.
- (h) The Contractor shall include this requirement in subcontracts of any tier which involve access to information or situations/conditions covered by the preceding paragraphs, substituting "subcontractor" for "contractor" where appropriate.
- (i) The rights and remedies described herein shall not be exclusive and are in addition to other rights and remedies provided by law or elsewhere included in this contract.
- (j) Compliance with this requirement is a material requirement of this contract.

(End of Text)

H-216-H002 LEVEL OF EFFORT--ALTERNATE I (NAVSEA) (NOV 2022) (Nov 2022)

- (a) The total level of effort for the performance of this contract is specified in Section B and includes prime and subcontractor direct labor (for those subcontractors specifically identified in the Contractor's proposal as having hours included in the proposed level of effort).
- (b) Of the total man-hours of direct labor set forth in Section B, it is estimated that _____ **(Offeror to fill-in)** man-hours are uncompensated effort.
- Uncompensated effort is defined as hours provided by personnel in excess of 40 hours per week without additional compensation for such excess work. All other effort is defined as compensated effort. If no effort is indicated in the first sentence of this paragraph, uncompensated effort performed by the Contractor shall not be counted in fulfillment of the level of effort obligations under this contract.
- (c) Effort performed in fulfilling the total level of effort obligations specified in Section B shall only include effort performed in direct support of this contract and shall not include time and effort expended on such things as local travel to and from an employee's usual work location, uncompensated effort while on travel status, truncated lunch periods, work (actual or inferred) at an employee's residence or other non-work locations (except as provided in paragraph (i) below), or other time and effort which does not have a specific and direct contribution to the tasks described in Sections B and C.
- (d) The level of effort for this contract shall be expended at an average rate of approximately **968** hours per week. It is understood and agreed that the rate of man-hours per week may fluctuate in pursuit of the technical objective, provided such fluctuation does not result in the use of the total man-hours of effort prior to the expiration of the term hereof, except as provided in the following paragraphs.
- (e) If, during the term hereof, the Contractor finds it necessary to accelerate the expenditure of direct labor to such an extent that the total manhours of effort specified in Section B would be used prior to the expiration of the term, the Contractor shall notify the Contracting Officer in writing setting forth the acceleration required; the probable benefits which would result; an offer to undertake the acceleration at no increase in the estimated cost or fee; and an offer for the additional man-hours to cover the remainder of the term to include a proposed level of effort, cost breakdown, and proposed fee, for continuation of the work until expiration of the term. The offer shall acknowledge that the additional man-hours proposed will be subject to the terms and conditions of this contract and any additions or changes required by then current law, regulations, or directives, and that the offer, with a written notice of acceptance by the Contracting Officer, shall constitute a binding contract. The Contractor shall not accelerate any effort until receipt of a signed contract modification by the Contracting Officer. Any agreement to accelerate will be formalized by contract modification.
- (f) The Contracting Officer may, by written order, direct the Contractor to accelerate the expenditure of direct labor such that the total manhours of effort specified in Section B would be used prior to the expiration of the term. This order shall specify the acceleration required and the resulting revised term. The Contractor shall acknowledge this order within five days of receipt.
- (g) The Contractor shall provide and maintain an accounting system, determined adequate by the Administrative Contracting Officer, which collects costs incurred and effort (compensated and uncompensated, if any) provided in fulfillment of the level of effort obligations of this contract. The Contractor shall indicate on each invoice the total level of effort claimed during the period covered by the invoice, separately identifying compensated effort and uncompensated effort, if any.
- (h) Within 45 days after completion of the work under each separately identified period of performance hereunder, the Contractor shall submit the following information in writing to the Contracting Officer with copies to the cognizant Contract Administration Office and to the Defense Contract Audit Agency office to which vouchers are submitted: (1) the total number of manhours of direct labor expended during the applicable period that separately identifies compensated and uncompensated hours; (2) a breakdown of this compensated total showing the number of manhours expended in each direct labor classification and associated direct and indirect costs; (3) a breakdown of other costs incurred; and (4) the Contractor's estimate of the total allowable cost incurred under the contract for the period. Additionally, in the case of a cost underrun the Contractor shall

submit the amount by which the estimated cost of this contract may be reduced to recover excess funds. All submissions shall include subcontractor information.

(i) Unless the Contracting Officer determines that alternative worksite arrangements are detrimental to contract performance, the Contractor may perform up to **100%** of the hours at an alternative worksite, provided the Contractor has a company-approved alternative worksite plan. The primary worksite is the traditional "main office" worksite. An alternative worksite means an employee's residence or a telecommuting center. A telecommuting center is a geographically convenient office setting as an alternative to an employee's main office. The Government reserves the right to review the Contractor's alternative worksite plan. In the event performance becomes unacceptable, the Contractor will be prohibited from counting the hours performed at the alternative worksite in fulfilling the total level of effort obligations of the contract. Regardless of work location, all contract terms and conditions, including security requirements and labor laws, remain in effect. The Government shall not incur any additional cost nor provide additional equipment for contract performance as a result of the Contractor's election to implement an alternative worksite plan.

(j) Notwithstanding any of the provisions in the above paragraphs and subject to the Limitation of Funds or Limitation of Cost clauses, as applicable, the period of performance may be extended at the discretion of the Contracting Officer, and the estimated cost may be increased in order to permit the Contractor to provide all of the man-hours listed in Section B. The contractor shall continue to be paid fee for each man-hour performed in accordance with the terms of the contract.

(End of Text)

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	May 2014		
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.204-21	Basic Safeguarding of Covered Contractor Information Systems.	Nov 2021		
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities.	Dec 2023		
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.204-27	Prohibition on a ByteDance Covered Application.	Jun 2023		
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015		
52.210-1	Market Research.	Nov 2021		
52.211-15	Defense Priority and Allocation Requirements.	Apr 2008		
52.215-8	Order of Precedence-Uniform Contract Format.	Oct 1997		
52.216-8	Fixed Fee.	Jun 2011		
52.219-30	Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program.	Oct 2022		
52.222-40	Notification of Employee Rights Under the National Labor Relations Act.	Dec 2010		
52.222-50	Combating Trafficking in Persons.	Oct 2025		
52.222-53	Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements.	May 2014		
52.223-23	Sustainable Products and Services.	May 2024		
52.225-13	Restrictions on Certain Foreign Purchases.	Feb 2021		
52.226-7	Drug-Free Workplace.	May 2024		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.227-1	Authorization and Consent.	Jun 2020		
52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement.	Jun 2020		
52.232-9	Limitation on Withholding of Payments.	Apr 1984		
52.232-17	Interest.	May 2014		
52.232-20	Limitation of Cost.	Apr 1984		
52.232-22	Limitation of Funds.	Apr 1984		
52.232-23	Assignment of Claims.	May 2014		
52.232-25	Prompt Payment.	Jan 2017		
52.232-25	Prompt Payment. (Alternate I)	Jan 2017	Alternate I	Feb 2002
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-1	Disputes.	May 2014		
52.233-3	Protest after Award. (Alternate I)	Aug 1996	Alternate I	Jun 1985
52.233-4	Applicable Law for Breach of Contract Claim.	Oct 2004		
52.237-3	Continuity of Services.	Jan 1991		
52.240-1	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities.	Nov 2024		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (DEVIATION 2025-O0003)	Oct 2025	Deviation 2025-O0003	Mar 2025
52.245-1	Government Property.	Sep 2021		
52.245-9	Use and Charges.	Apr 2012		
52.246-25	Limitation of Liability-Services.	Feb 1997		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.203-7004	Display of Hotline Posters.	Jan 2023		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
	Prohibition on the Acquisition of Covered Defense Telecommunications			

252.204-7018	Equipment or Services.	Jan 2023	
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023	
252.204-7023	Reporting Requirements for Contracted Services.	Jul 2021	
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019	
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements.	Jan 2023	
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022	
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023	
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023	
252.225-7972	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014 Aug 2024
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023	
252.226-7003	Drug-Free Work Force.	Aug 2024	
252.227-7013	Rights in Technical Data-Other Than Commercial Products and Commercial Services.	Aug 2025	
252.227-7015	Technical Data-Commercial Products and Commercial Services.	Jan 2025	
252.227-7016	Rights in Bid or Proposal Information.	Jan 2025	
252.227-7030	Technical Data-Withholding of Payment.	Mar 2000	
252.227-7037	Validation of Asserted Restrictions on Technical Data.	Jan 2025	
252.232-7010	Levies on Contract Payments.	Dec 2006	
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023	
252.242-7006	Accounting System Administration.	Jan 2025	
252.243-7002	Requests for Equitable Adjustment.	Dec 2022	
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023	
252.245-7003	Contractor Property Management System Administration	Jan 2025	
252.245-7005	Management and Reporting of Government Property.	Jan 2024	

FAR Clauses Incorporated by Full Text

52.219-28 Postaward Small Business Program Rerepresentation. (Jan 2025)

POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (JAN 2025)

(a) Definitions. As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) If the Contractor represented its status as any of the small business concerns identified at 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, for the NAICS code assigned to an order (except that paragraphs (c)(1) through (3) of this clause do not apply to an order issued under a Federal Supply Schedule contract at subpart 8.4)-

(1) Set aside exclusively for a small business concern identified at 19.000(a)(3) that is issued under an unrestricted multiple-award contract, unless the order is issued under the reserved portion of an unrestricted multiple-award contract (e.g., an order set aside for a woman-owned small business under a multiple-award contract that is not set-aside, unless the order is issued under the reserved portion of the multiple-award contract);

(2) Issued under a multiple-award contract set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying multiple-award contract (e.g., an order set aside for a HUBZone small business concern under a multiple-award contract that is set aside for small businesses);

(3) Issued under the part of the multiple-award contract that is set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying set-aside part of the multiple-award contract (e.g., an order set aside for a WOSB concern under the part of the multiple-award contract that is partially set aside for small businesses); and

(4) When the Contracting Officer explicitly requires it for an order issued under a multiple-award contract, including for an order issued under a Federal Supply Schedule contract (see 8.405-5(b) and 19.301-2(b)(2)).

(d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraphs (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.

(g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under ____NAICS Code assigned to ____contract number.

(2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it ☐ is, ☐ is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it ☐ is, ☐ is not a veteran-owned small business concern.

(7) *[Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.]* The Contractor represents that it ☐ is, ☐ is not a service-disabled veteran-owned small business concern.

(8) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(9) [*Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.*] The Contractor represents that-

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

[____ Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.222-2 Payment for Overtime Premiums.

(Jul 1990)

PAYMENT FOR OVERTIME PREMIUMS (JULY 1990)

(a) The use of overtime is authorized under this contract if the overtime premium does not exceed * ____ or the overtime premium is paid for work-

(1) Necessary to cope with emergencies such as those resulting from accidents, natural disasters, breakdowns of production equipment, or occasional production bottlenecks of a sporadic nature;

(2) By indirect-labor employees such as those performing duties in connection with administration, protection, transportation, maintenance, standby plant protection, operation of utilities, or accounting;

(3) To perform tests, industrial processes, laboratory procedures, loading or unloading of transportation conveyances, and operations in flight or afloat that are continuous in nature and cannot reasonably be interrupted or completed otherwise; or

(4) That will result in lower overall costs to the Government.

(b) Any request for estimated overtime premiums that exceeds the amount specified above shall include all estimated overtime for contract completion and shall-

(1) Identify the work unit; *e.g.*, department or section in which the requested overtime will be used, together with present workload, staffing, and other data of the affected unit sufficient to permit the Contracting Officer to evaluate the necessity for the overtime;

(2) Demonstrate the effect that denial of the request will have on the contract delivery or performance schedule;

(3) Identify the extent to which approval of overtime would affect the performance or payments in connection with other Government contracts, together with identification of each affected contract; and

(4) Provide reasons why the required work cannot be performed by using multishift operations or by employing additional personnel.

* Insert either "zero" or the dollar amount agreed to during negotiations. The inserted figure does not apply to the exceptions in paragraph (a)(1) through (a)(4) of the clause.

(End of clause)

52.248-1 Value Engineering.

(Jun 2020)

VALUE ENGINEERING (JUN 2020)

(a) *General.* The Contractor is encouraged to develop, prepare, and submit value engineering change proposals (VECP's) voluntarily. The Contractor shall share in any net acquisition savings realized from accepted VECP's, in accordance with the incentive sharing rates in paragraph (f) of this clause.

(b) *Definitions.*

Acquisition savings, as used in this clause, means savings resulting from the application of a VECP to contracts awarded by the same contracting office or its successor for essentially the same unit. Acquisition savings include-

(1) Instant contract savings, which are the net cost reductions on this, the instant contract, and which are equal to the instant unit cost reduction multiplied by the number of instant contract units affected by the VECP, less the Contractor's allowable development and implementation costs;

(2) Concurrent contract savings, which are net reductions in the prices of other contracts that are definitized and ongoing at the time the VECP is accepted; and

(3) Future contract savings, which are the product of the future unit cost reduction multiplied by the number of future contract units in the sharing base. On an instant contract, future contract savings include savings on increases in quantities after VECP acceptance that are due to contract modifications, exercise of options, additional orders, and funding of subsequent year requirements on a multiyear contract.

Collateral savings, as used in this clause, means those measurable net reductions resulting from a VECP in the agency's overall projected collateral costs, exclusive of acquisition savings, whether or not the acquisition cost changes.

Contracting office includes any contracting office that the acquisition is transferred to, such as another branch of the agency or another agency's office that is performing a joint acquisition action.

Contractor's development and implementation costs, as used in this clause, means those costs the Contractor incurs on a VECP specifically in developing, testing, preparing, and submitting the VECP, as well as those costs the Contractor incurs to make the contractual changes required by Government acceptance of a VECP.

Future unit cost reduction, as used in this clause, means the instant unit cost reduction adjusted as the Contracting Officer considers necessary for projected learning or changes in quantity during the sharing period. It is calculated at the time the VECP is accepted and applies either-

(1) Throughout the sharing period, unless the Contracting Officer decides that recalculation is necessary because conditions are significantly different from those previously anticipated; or

(2) To the calculation of a lump-sum payment, which cannot later be revised.

Government costs, as used in this clause, means those agency costs that result directly from developing and implementing the VECP, such as any net increases in the cost of testing, operations, maintenance, and logistics support. The term does not include the normal administrative costs of processing the VECP or any increase in this contract's cost or price resulting from negative instant contract savings.

Instant contract, as used in this clause, means this contract, under which the VECP is submitted. It does not include increases in quantities after acceptance of the VECP that are due to contract modifications, exercise of options, or additional orders. If this is a multiyear contract, the term does not include quantities funded after VECP acceptance. If this contract is a fixed-price contract with prospective price redetermination, the term refers to the period for which firm prices have been established.

Instant unit cost reduction means the amount of the decrease in unit cost of performance (without deducting any Contractor's development or implementation costs) resulting from using the VECP on this, the instant contract. If this is a service contract, the instant unit cost reduction is normally equal to the number of hours per line-item task saved by using the VECP on this contract, multiplied by the appropriate contract labor rate.

Negative instant contract savings means the increase in the cost or price of this contract when the acceptance of a VECP results in an excess of the Contractor's allowable development and implementation costs over the product of the instant unit cost reduction multiplied by the number of instant contract units affected.

Net acquisition savings means total acquisition savings, including instant, concurrent, and future contract savings, less Government costs.

Sharing base, as used in this clause, means the number of affected end items on contracts of the contracting office accepting the VECP.

Sharing period, as used in this clause, means the period beginning with acceptance of the first unit incorporating the VECP and ending at a calendar date or event determined by the contracting officer for each VECP.

Unit, as used in this clause, means the item or task to which the Contracting Officer and the Contractor agree the VECP applies.

Value engineering change proposal (VECP) means a proposal that-

(1) Requires a change to this, the instant contract, to implement; and

(2) Results in reducing the overall projected cost to the agency without impairing essential functions or characteristics; *provided*, that it does not involve a change-

(i) In deliverable end item quantities only;

(ii) In research and development (R&D) end items or R&D test quantities that is due solely to results of previous testing under this contract; or

(iii) To the contract type only.

(c) *VECP preparation*. As a minimum, the Contractor shall include in each VECP the information described in paragraphs (c)(1) through (8) of this clause. If the proposed change is affected by contractually required configuration management or similar procedures, the instructions in those procedures relating to format, identification, and priority assignment shall govern VECP preparation. The VECP shall include the following:

(1) A description of the difference between the existing contract requirement and the proposed requirement, the comparative advantages and disadvantages of each, a justification when an item's function or characteristics are being altered, the effect of the change on the end item's performance, and any pertinent objective test data.

(2) A list and analysis of the contract requirements that must be changed if the VECP is accepted, including any suggested specification revisions.

(3) Identification of the unit to which the VECP applies.

(4) A separate, detailed cost estimate for (i) the affected portions of the existing contract requirement and (ii) the VECP. The cost reduction associated with the VECP shall take into account the Contractor's allowable development and implementation costs, including any amount attributable to subcontracts under the Subcontracts paragraph of this clause.

(5) A description and estimate of costs the Government may incur in implementing the VECP, such as test and evaluation and operating and support costs.

(6) A prediction of any effects the proposed change would have on collateral costs to the agency.

(7) A statement of the time by which a contract modification accepting the VECP must be issued in order to achieve the maximum cost reduction, noting any effect on the contract completion time or delivery schedule.

(8) Identification of any previous submissions of the VECP, including the dates submitted, the agencies and contract numbers involved, and previous Government actions, if known.

(d) *Submission.* The Contractor shall submit VECP's to the Contracting Officer, unless this contract states otherwise. If this contract is administered by other than the contracting office, the Contractor shall submit a copy of the VECP simultaneously to the Contracting Officer and to the Administrative Contracting Officer.

(e) Government action.

(1) The Contracting Officer will notify the Contractor of the status of the VECP within 45 calendar days after the contracting office receives it. If additional time is required, the Contracting Officer will notify the Contractor within the 45-day period and provide the reason for the delay and the expected date of the decision. The Government will process VECP's expeditiously; however, it will not be liable for any delay in acting upon a VECP.

(2) If the VECP is not accepted, the Contracting Officer will notify the Contractor in writing, explaining the reasons for rejection. The Contractor may withdraw any VECP, in whole or in part, at any time before it is accepted by the Government. The Contracting Officer may require that the Contractor provide written notification before undertaking significant expenditures for VECP effort.

(3) Any VECP may be accepted, in whole or in part, by the Contracting Officer's award of a modification to this contract citing this clause and made either before or within a reasonable time after contract performance is completed. Until such a contract modification applies a VECP to this contract, the Contractor shall perform in accordance with the existing contract. The decision to accept or reject all or part of any VECP is a unilateral decision made solely at the discretion of the Contracting Officer.

(f) *Sharing rates.* If a VECP is accepted, the Contractor shall share in net acquisition savings according to the percentages shown in the table below. The percentage paid the Contractor depends upon-

(1) This contract's type (fixed-price, incentive, or cost-reimbursement);

(2) The sharing arrangement specified in paragraph (a) of this clause (incentive, program requirement, or a combination as delineated in the Schedule); and

(3) The source of the savings (the instant contract, or concurrent and future contracts), as follows:

Contractor's Share of Net Acquisition Savings (Figure in Percent)				
Contract Type	Incentive (Voluntary)		Program Requirement (Mandatory)	
	Instant Contract Rate	Concurrent and Future Contract Rate	Instant Contract Rate	Concurrent and Future Contract Rate
Fixed-price (includes fixed-	*50	*50	25	25

price-award-fee; excludes other fixed-price incentive contracts)				
Incentive (fixed-price or cost) (other than award fee)	(**)	*50	(**)	25
Cost-reimbursement (includes cost-plus-award-fee; excludes other cost-type incentive contracts)	***25	***25	15	15
* The Contracting Office may increase the Contractor's sharing rate to as high as 75 percent for each VECP.				
** Same sharing arrangement as the contract's profit or fee adjustment formula.				
*** The Contracting Office may increase the Contractor's sharing rate to as high as 50 percent for each VECP.				

(g) Calculating net acquisition savings.

(1) Acquisition savings are realized when (i) the cost or price is reduced on the instant contract, (ii) reductions are negotiated in concurrent contracts, (iii) future contracts are awarded, or (iv) agreement is reached on a lump-sum payment for future contract savings (see paragraph (i)(4) of this clause). Net acquisition savings are first realized, and the Contractor shall be paid a share, when Government costs and any negative instant contract savings have been fully offset against acquisition savings.

(2) Except in incentive contracts, Government costs and any price or cost increases resulting from negative instant contract savings shall be offset against acquisition savings each time such savings are realized until they are fully offset. Then, the Contractor's share is calculated by multiplying net acquisition savings by the appropriate Contractor's percentage sharing rate (see paragraph (f) of this clause). Additional Contractor shares of net acquisition savings shall be paid to the Contractor at the time realized.

(3) If this is an incentive contract, recovery of Government costs on the instant contract shall be deferred and offset against concurrent and future contract savings. The Contractor shall share through the contract incentive structure in savings on the instant contract items affected. Any negative instant contract savings shall be added to the target cost or to the target price and ceiling price, and the amount shall be offset against concurrent and future contract savings.

(4) If the Government does not receive and accept all items on which it paid the Contractor's share, the Contractor shall reimburse the Government for the proportionate share of these payments.

(h) *Contract adjustment.* The modification accepting the VECP (or a subsequent modification issued as soon as possible after any negotiations are completed) shall-

(1) Reduce the contract price or estimated cost by the amount of instant contract savings, unless this is an incentive contract;

(2) When the amount of instant contract savings is negative, increase the contract price, target price and ceiling price, target cost, or estimated cost by that amount;

(3) Specify the Contractor's dollar share per unit on future contracts, or provide the lump-sum payment;

(4) Specify the amount of any Government costs or negative instant contract savings to be offset in determining net acquisition savings realized from concurrent or future contract savings; and

(5) Provide the Contractor's share of any net acquisition savings under the instant contract in accordance with the following:

(i) Fixed-price contracts-add to contract price.

(ii) Cost-reimbursement contracts-add to contract fee.

(i) Concurrent and future contract savings.

(1) Payments of the Contractor's share of concurrent and future contract savings shall be made by a modification to the instant contract in accordance with paragraph (h)(5) of this clause. For incentive contracts, shares shall be added as a separate firm-fixed-price line item on the instant contract. The Contractor shall maintain records adequate to identify the first delivered unit for 3 years after final payment under this contract.

(2) The Contracting Officer shall calculate the Contractor's share of concurrent contract savings by-

(i) Subtracting from the reduction in price negotiated on the concurrent contract any Government costs or negative instant contract savings not yet offset; and

(ii) Multiplying the result by the Contractor's sharing rate.

(3) The Contracting Officer shall calculate the Contractor's share of future contract savings by-

(i) Multiplying the future unit cost reduction by the number of future contract units scheduled for delivery during the sharing period;

(ii) Subtracting any Government costs or negative instant contract savings not yet offset; and

(iii) Multiplying the result by the Contractor's sharing rate.

(4) When the Government wishes and the Contractor agrees, the Contractor's share of future contract savings may be paid in a single lump sum rather than in a series of payments over time as future contracts are awarded. Under this alternate procedure, the future contract savings may be calculated when the VECP is accepted, on the basis of the Contracting Officer's forecast of the number of units that will be delivered during the sharing period. The Contractor's share shall be included in a modification to this contract (see paragraph (h)(3) of this clause) and shall not be subject to subsequent adjustment.

(5) *Alternate no-cost settlement method.* When, in accordance with section 48.104-4 of the Federal Acquisition Regulation (FAR), the Government and the Contractor mutually agree to use the no-cost settlement method, the following applies:

(i) The Contractor will keep all the savings on the instant contract and on its concurrent contracts only.

(ii) The Government will keep all the savings resulting from concurrent contracts placed on other sources, savings from all future contracts, and all collateral savings.

(j) *Collateral savings.* If a VECP is accepted, the Contracting Officer will increase the instant contract amount, as specified in paragraph (h)(5) of this clause, by a rate from 20 to 100 percent, as determined by the Contracting Officer, of any projected collateral savings determined to be realized in a typical year of use after subtracting any Government costs not previously offset. However, the Contractor's share of collateral savings will not exceed the contract's firm-fixed-price, target price, target cost, or estimated cost, at the time the VECP is accepted, or \$100,000, whichever is greater. The Contracting Officer will be the sole determiner of the amount of collateral savings.

(k) *Relationship to other incentives.* Only those benefits of an accepted VECP not rewardable under performance, design-to-cost (production unit cost, operating and support costs, reliability and maintainability), or similar incentives shall be rewarded under this clause. However, the targets of such incentives affected by the VECP shall not be adjusted because of VECP acceptance. If this contract specifies targets but provides no incentive to surpass them, the value engineering sharing shall apply only to the amount of achievement better than target.

(l) *Subcontracts.* The Contractor shall include an appropriate value engineering clause in any subcontract-valued at or above the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, and may include one in subcontracts of lesser value. In calculating any adjustment in this contract's price for instant contract savings (or negative instant contract savings), the Contractor's allowable development and implementation costs shall include any subcontractor's allowable development and implementation costs, and any value engineering incentive payments to a subcontractor, clearly resulting from a VECP accepted by the Government under this contract. The Contractor may choose any arrangement for subcontractor value engineering incentive payments, *provided*, that the payments shall not reduce the Government's share of concurrent or future contract savings or collateral savings.

(m) *Data.* The Contractor may restrict the Government's right to use any part of a VECP or the supporting data by marking the following legend on the affected parts:

These data, furnished under the Value Engineering clause of contract _____, shall not be disclosed outside the Government or duplicated, used, or disclosed, in whole or in part, for any purpose other than to evaluate a value engineering change proposal submitted under the clause. This restriction does not limit the Government's right to use information contained in these data if it has been obtained or is otherwise available from the Contractor or from another source without limitations.

If a VECP is accepted, the Contractor hereby grants the Government unlimited rights in the VECP and supporting data, except that, with respect to data qualifying and submitted as limited rights technical data, the Government shall have the rights specified in the contract modification implementing the VECP and shall appropriately mark the data. (The terms "unlimited rights" and "limited rights" are defined in part 27 of the Federal Acquisition Regulation.)

(End of clause)

52.252-2 Clauses Incorporated by Reference. (Feb 1998)

CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR: <http://acquisition.gov/far/> DFARS: <http://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html> NMCARS: <https://www.secnave.navy.mil/rda/DASN-P/Pages/NMCARS.aspx>, DoD Class Deviations: https://www.acq.osd.mil/dpap/dars/class_deviations.html [Insert one or more Internet addresses]

(End of clause)

52.252-6 Authorized Deviations in Clauses. (Nov 2020)

AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation Supplement [insert regulation name] (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.204-7021 Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements. (Nov 2025)

CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

170.15); and (A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

and 170.17); and (A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-

170.18); and (A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

(1) Final Level 1 (Self).

(2) Conditional Level 2 (Self).

(3) Final Level 2 (Self).

(4) Conditional Level 2 (C3PAO).

(5) Final Level 2 (C3PAO).

(6) Conditional Level 3 (DIBCAC).

(7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) *Framework.* The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) *Duplication.* The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) *Requirements.* The Contractor shall-

(1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: _____
Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC) for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk

System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) *Reporting.* The Contractor shall-

(1) Submit to the Contracting Officer-

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) *Subcontracts.* The Contractor shall-

(1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

52.217-9 VAR I OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000) (NAVSEA VARIATION I) (OCT 2018) (Oct 2018)

(a) The Government may extend the term of this contract by written notice(s) to the Contractor within the periods specified below. If more than one option exists, the Government has the right to unilaterally exercise any such option whether or not it has exercised other options.

<u>ITEMS</u>	<u>LATEST OPTION EXERCISE DATE</u>
Option Period One Lines in Section B	Prior to the expiration of the Period of Performance for Base Period Line Items in Section B
Option Period Two Line Items in Section B	Prior to the expiration of the Period of Performance for Option Period One Line Items in Section B
Option Period Three Line Items in Section B	Prior to the expiration of the Period of Performance for Option Period Two Line Items in Section B
Option Period Four Line Items in Section B	Prior to the expiration of the Period of Performance for Option Period Three Line Items in Section B

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any option(s) under this clause, shall not exceed five (5) years, however, in accordance with paragraph (j) of the requirement of this contract entitled "Level of Effort - Alternate I", if the total manhours delineated in paragraph (a) of the Level of Effort requirement, have not been expended within the period specified above, the Government may require the Contractor to continue to perform the work until the total number of manhours specified in paragraph (a) of the aforementioned requirement have been expended.

(End of Clause)

Section J - List of Attachments

The following document(s), exhibit(s), and other attachment(s) form a part of this contract:

Exhibit A - Contract Data Requirements List (CDRLs) - DD1423

CDRL	TITLE
A001	Proposed Spare Parts Lists
A002	Contractor Status Report
A003	Contractor's Data Management Plan (CDMP)
A004	Quality Assurance Program Plan (QAPP)
A005	Phase-Out Transition Plan
A006	Government Property Inventory Report

Data Item Descriptions for the CDRLs provided in Exhibits A-F can be downloaded at the following location: <https://quicksearch.dla.mil/qsSearch.aspx>

ATTACHMENT	DESCRIPTION
1	Department of Defense Contract Security Classification Specification - DD 254
2	Quality Assurance Surveillance Plan (QASP)
3	Staffing Plan
4	Personnel Qualifications
5	Past Performance Reference <i>(Will not become a part of the awarded order)</i>
6	Cost Proposal Spreadsheet <i>(Will not become a part of the awarded order)</i>

7	Government Furnished Property <i>(Will be finalized at award)</i>
Appendix A	Performance Requirements Summary
Appendix B	Non-Disclosure Agreement
Appendix C	Table of Deliverables

(End of Text)

Exhibits:

Id	Exhibit Name	Exhibit Description	Reference Identifier	Date	Line Item
A	Exhibit A_DD 1423_CDRL A001	Contract Data Requirements List (CDRL)		07 Jan 2026	
B	Exhibit B_DD 1423_CDRL A002	Contract Data Requirements List (CDRL)		07 Jan 2026	
C	Exhibit C_DD 1423_CDRL A003	Contract Data Requirements List (CDRL)		07 Jan 2026	
D	Exhibit D_DD 1423_CDRL A004	Contract Data Requirements List (CDRL)		07 Jan 2026	
E	Exhibit E_DD 1423_CDRL A005	Contract Data Requirements List (CDRL)		07 Jan 2026	
F	Exhibit F_DD 1423_CDRL A006	Contract Data Requirements List (CDRL)		07 Jan 2026	

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	Attachment 1_DD Form 254	Contract Security Classification Specification (DD 254)		07 Jan 2026
02	Attachment 2_Quality Assurance Surveillance Plan			07 Jan 2026
03	Attachment 3_Staffing_Plan			07 Jan 2026

04	Attachment 4_Personnel Qualifications			07 Jan 2026
05	Attachment 5_Past Performance Reference			07 Jan 2026
06	Attachment 6_Cost_Proposal_Spreadsheet			07 Jan 2026
08	Appendix A_Performance Requirements Summary			07 Jan 2026
09	Appendix B_Non-Disclosure Summary			07 Jan 2026
10	Appendix C_Table of Deliverables			07 Jan 2026
11	NAVSUPINST 4441.37A - NAVSEAINST 4441.12A - MARRC-RB (04 SEP 2020)			07 Jan 2026

Section K - Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.225-25	Prohibition on Contracting With Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications.	Jun 2020		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.219-7000	Advancing Small Business Growth.	Jun 2023		
252.225-7031	Secondary Arab Boycott of Israel .	Jun 2005		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Aug 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		
252.225-7973	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems###Representation. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024

FAR Clauses Incorporated by Full Text

52.204-8 Annual Representations and Certifications. (Oct 2025)

ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2025)

(a)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 541330[insert NAICS code].

(2) The small business size standard is \$47M[insert size standard].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) ☐ Paragraph (d) applies.

(ii) ☐ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

(A) The acquisition is to be made under the simplified acquisition procedures in part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$200,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) 52.222-22, Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at 52.222-26, Equal Opportunity.

(xv) 52.222-25, Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at 52.222-26, Equal Opportunity.

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix) 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals-Representation. This provision applies to solicitations that include the provision at 52.204-7.

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

☐ (i) 52.204-17, Ownership or Control of Offeror.

☐ (ii) 52.204-20, Predecessor of Offeror.

☐ (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

☐ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.

☐ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

☐ (vi) 52.227-6, Royalty Information.

☐ (A) Basic.

☐ (B) Alternate I.

☐ (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause #	Title	Date	Change

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

52.204-17 Ownership or Control of Offeror.

(Aug 2020)

OWNERSHIP OR CONTROL OF OFFEROR (AUG 2020)

(a) *Definitions.* As used in this provision-

Commercial and Government Entity (CAGE) code means-

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

(b) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (c) and if applicable, paragraph (d) of this provision for each participant in the joint venture.

(c) If the Offeror indicates "has" in paragraph (b) of this provision, enter the following information:

Immediate owner CAGE code: _____

Immediate owner legal name: _____

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity?: ☐ Yes or ☐ No.

(d) If the Offeror indicates "yes" in paragraph (c) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: _____

Highest-level owner legal name: _____

(Do not use a "doing business as" name)

(End of provision)

52.204-20 Predecessor of Offeror.

(Aug 2020)

PREDECESSOR OF OFFEROR (AUG 2020)

(a) *Definitions.* As used in this provision-

Commercial and Government Entity (CAGE) code means-

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

(b) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(c) If the Offeror has indicated "is" in paragraph (b) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ____ (or mark "Unknown").

Predecessor legal name: ____.

(Do not use a "doing business as" name).

(End of provision)

52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021)

REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services-Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions.* As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.*

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that-

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that-

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-26 Covered Telecommunications Equipment or Services-Representation.

(Oct 2020)

COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (OCT 2020)

(a) *Definitions.* As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c)

(1) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. (Feb 2016)

REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (FEB 2016)

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that-

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that-

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

52.219-1 Small Business Program Representations. (Feb 2024)

SMALL BUSINESS PROGRAM REPRESENTATIONS (FEB 2024)

(a) *Definitions.* As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern-

(1)

(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran or;

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C.101(2), with a disability that is service-connected, as defined in 38 U.S.C.101(16), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that-

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C.101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business concern means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 541330[insert NAICS code].

(2) The small business size standard is \$47 million[insert size standard].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) *Representations.*

(1) The offeror represents as part of its offer that-

(i) it ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(6) Veteran-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(7) SDVOSB concern. [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(6) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not an SDVOSB concern.

(8) SDVOSB joint venture eligible under the SDVOSB Program. [Complete only if the offeror represented itself as a SDVOSB concern in paragraph (c)(7) of this provision]. The offeror represents as part of its offer that it ☐ is, ☐ is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(9) HUBZone small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that-

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Notice. Under 15 U.S.C.645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, shall-

- (1) Be punished by imposition of fine, imprisonment, or both;
- (2) Be subject to administrative remedies, including suspension and debarment; and
- (3) Be ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7007 Alternate A, Annual Representations and Certifications.

(Oct 2025) Alternate A (Oct 2025)

ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2025)

Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (e) applies.

☐ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment-Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services-Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$200,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)-Representation. Applies to solicitations and contracts when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)-Representation. Applies to solicitations and contracts when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer:
[Contracting Officer check as appropriate.]

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American-Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American-Free Trade Agreements-Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

☐ (vii) 252.232-7015, Performance-Based Payments-Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted

electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS Provision #	Title	Date	Change
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

252.204-7016 Covered Defense Telecommunications Equipment or Services-Representation.

(Dec 2019)

COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)

(a) *Definitions.* As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.

(May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.227-7017 Identification and Assertion of Use, Release, or Disclosure Restrictions.

(Jan 2025)

IDENTIFICATION AND ASSERTION OF USE, RELEASE, OR DISCLOSURE RESTRICTIONS (JAN 2025)

(a) *Definitions.* As used in this provision-

"Computer software" is defined in-

(1) The 252.227-7014, Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation, clause of this solicitation; or

(2) If this solicitation contemplates a contract under the Small Business Innovation Research Program or Small Business Technology Transfer Program, the 252.227-7018, Rights in Other Than Commercial Technical Data and Computer Software-Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

"SBIR/STTR data" is defined in the 252.227-7018, Rights in Other Than Commercial Technical Data and Computer Software-Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

"Technical data" is defined in-

(1) The 252.227-7013, Rights in Technical Data-Other Than Commercial Products and Commercial Services, clause of this solicitation; or

(2) If this solicitation contemplates a contract under the Small Business Innovation Research Program or Small Business Technology Transfer Program, the 252.227-7018, Rights in Other Than Commercial Technical Data and Computer Software-Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

(b) The identification and assertion requirements in this provision apply only to technical data, including computer software documentation, or computer software to be delivered with other than unlimited rights. For contracts to be awarded under the Small Business Innovation Research (SBIR) Program or Small Business Technology Transfer (STTR) Program, these requirements apply to SBIR/STTR data that will be generated under the resulting contract and will be delivered with SBIR/STTR data rights and to any other data that will be delivered with other than unlimited rights. Notification and identification are not required for restrictions based solely on copyright.

(c) Offers submitted in response to this solicitation shall identify, to the extent known at the time an offer is submitted to the Government, the technical data or computer software that the Offeror, its subcontractors or suppliers, or potential subcontractors or suppliers, assert should be furnished to the Government with restrictions on use, release, or disclosure.

(d) The Offeror's assertions, including the assertions of its subcontractors or suppliers or potential subcontractors or suppliers, shall be submitted as an attachment to its offer in the following format, dated and signed by an official authorized to contractually obligate the Offeror:

Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Technical Data or Computer Software.

The Offeror asserts for itself, or the persons identified below, that the Government's rights to use, release, or disclose the following technical data or computer software should be restricted:

Technical Data or			
Computer Software			Name of Person

to be Furnished	Basis for	Asserted Rights	Asserting
With Restrictions ¹	Assertion ²	Category ³	Restrictions ⁴
____(LIST) ⁵	____(LIST)	____(LIST)	____(LIST)

¹ For technical data (other than computer software documentation) pertaining to items, components, or processes developed at private expense, identify both the deliverable technical data and each such item, component, or process. For computer software or computer software documentation identify the software or documentation.

² Generally, development at private expense, either exclusively or partially, is the only basis for asserting restrictions. For technical data, other than computer software documentation, development refers to development of the item, component, or process to which the data pertain. The Government's rights in computer software documentation generally may not be restricted. For computer software, development refers to the software. Indicate whether development was accomplished exclusively or partially at private expense. If development was not accomplished at private expense, or for computer software documentation, enter the specific basis for asserting restrictions.

³ Enter asserted rights category (e.g., government purpose license rights from a prior contract, rights in SBIR/STTR data generated under a contract resulting from this solicitation or under another contract, limited, restricted, or government purpose rights under a contract resulting from this solicitation or under a prior contract, or specially negotiated licenses).

⁴ Corporation, individual, or other person, as appropriate.

⁵ Enter "none" when all data or software will be submitted without restrictions.

Date	_____
Printed Name and Title	_____

Signature	_____

(End of identification and assertion)

(e) An offeror's failure to submit, complete, or sign the notification and identification required by paragraph (d) of this provision with its offer may render the offer ineligible for award.

(f) If the Offeror is awarded a contract, the assertions identified in paragraph (d) of this provision shall be listed in an attachment to that contract. Upon request by the Contracting Officer, the Offeror shall provide sufficient information to enable the Contracting Officer to evaluate any listed assertion.

(End of provision)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

K-227-W001 INSTRUCTIONS FOR OBTAINING EXPORT-CONTROLLED TECHNICAL DATA (NAVSEA) (MAY 2022) (May 2022)

(a) An offeror may not receive export-controlled technical data, which is specified in this solicitation, unless the offeror is a qualified U.S. contractor as defined in paragraph (b). See paragraph (c) and (d) for instructions on becoming a qualified U.S. contractor. Questions about this program or DD Form 2345 should be addressed to U.S./Canada Joint Certification Office, Defense Logistics Information Services (DLIS), Federal Center, 74 Washington Avenue North, Battle Creek, MI 49017-3084; or telephone (877) 352-2255; or email jcp-admin@dla.mil.

(b) By Department of Defense (DOD) Directive 5230.25 (hereinafter referred to as "the Directive"), a program was established to allow Qualified U.S. Contractors to obtain export-controlled technical data under certain conditions. A "Qualified U.S. Contractor" is a private individual or enterprise (hereinafter described as a "U.S. Contractor") that, in accordance with

procedures established by the Under Secretary of Defense for Research and Engineering, # certifies # does not certify, as a condition of obtaining export-controlled technical data subject to the Directive from the Department of Defense, that:

(1) The individual who will act as recipient of the export-controlled technical data on behalf of the U.S. Contractor is a U.S. citizen or a person admitted lawfully into the United States for permanent residence and is located in the United States;

(2) Such data is needed to bid or perform on a contract with the Department of Defense, or other U.S. Government agency, or for other legitimate business purposes in which the U.S. Contractor is engaged, or plans to engage. The purpose for which the data is needed shall be described sufficiently in such certification to permit an evaluation of whether subsequent requests for data are related properly to such business purpose.

(3) The U.S. Contractor acknowledges its responsibilities under U.S. export control laws and regulations (including the obligation, under certain circumstances, to obtain an export license prior to the release of technical data within the United States) and agrees that it will not disseminate any export-controlled technical data subject to the Directive in a manner that would violate applicable export control laws and regulations.

(4) The U.S. Contractor also agrees that, unless dissemination is permitted by the Directive, it will not provide access to export-controlled technical data subject to the Directive to persons other than its employees or persons acting on its behalf, without the permission of the DOD component that provided the technical data.

(5) To the best of its knowledge and belief, the U.S. Contractor knows of no person employed by it, or acting on its behalf, who will have access to such data, who is debarred, suspended or otherwise ineligible to perform under U.S. Government contracts; or has violated U.S. export control laws or a certification previously made to the Department of Defense under the provisions of the Directive.

(c) Private individuals or enterprises are certified as Qualified U.S. Contractors by submitting a DD Form 2345 to U.S./Canada Joint Certification Office, Defense Logistics Information Services, Federal Center, 74 Washington Avenue, North, Battle Creek, MI 49017-3084.

(d) Canadian contractors may be qualified in accordance with the Directive for technical data that do not require a license for export to Canada under section 125.12 of the International Traffic in Arms Regulations and sections 379.4(d) and 379.5(e) of the Export Administration Regulations, by submitting an equivalent certification to the DLIC.

(End of Provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

1.0 INSTRUCTIONS FOR SUBMISSION OF OFFERS

Offeror shall comply with the detailed instructions for the format and content of the proposal. Proposals shall be clear and unambiguous. Proposals that do not comply with the detailed instructions for the format and content of the proposal may render the Offeror ineligible for award. The Government reserves the right to reject any proposal that does not comply with these proposal submission instructions.

Proposals shall be submitted through the PIEE Solicitation Module by the solicitation closing date and time specified on the cover page of this solicitation, block (9). Offers must be received via the PIEE Solicitation Module by the closing date and time in order to be considered for award. It is not permissible to upload a link to an internet-based data center (e.g. Google cloud or Dropbox). Offeror shall submit all required proposal information as files uploaded directly in the PIEE Solicitation Module. In the rare event the PIEE system is down or inaccessible, Offeror shall immediately notify the cognizant Contracting Officer for the solicitation via e-mail prior to the solicitation closing date and time. In the rare event of a PIEE system malfunction, arrangements must be made with the Contracting Officer cognizant for the solicitation prior to the solicitation closing date and time in order to submit a proposal electronically outside the PIEE Solicitation Module. Failure to submit a complete proposal prior to the solicitation closing date and time will render the proposal late and unacceptable.

Offerors are responsible for submitting proposals and any proposal modifications in the PIEE Solicitation Module by the time specified in the solicitation. Any proposal modification not submitted in the PIEE Solicitation Module by the exact time specified for receipt of offers is "late" and will not be considered. The solicitation will close at the exact date and time specified in the solicitation and Offerors will be unable to submit its proposal after that time. Each proposal submitted in the PIEE Solicitation Module is time/date stamp recorded by the system at time of proposal upload. Proposals may be withdrawn by written notice to the cognizant Contracting Officer for the solicitation provided such notice is received prior to Task Order award.

Resources on how to navigate the PIEE Solicitation Module are available at <https://dodprocurementtoolbox.com/site-pages/solicitation-module>.

2.0 Proposal Format

In order to maximize efficiency and minimize the time for proposal evaluation, all Offerors shall submit their proposals in accordance with the format and content specified below. The requirements below apply equally to subcontractors. Proposals that do not meet the below requirements may be deemed unresponsive and may not be eligible for award. The electronic proposal shall be prepared so that if printed, the proposal meets the following format requirements:

- 8.5 x 11 inch paper
- Single-spaced typed lines
- 1 inch margins
- Font text shall be 12-point Times New Roman, except for:
 - o Graphs, graphics, or charts used to supplement the proposal text shall use Times New Roman that is no smaller than 9-point font size.
 - o Microsoft Office Excel spreadsheets shall use Times New Roman that is no smaller than 9-point font size. These Excel spreadsheets shall be formatted for printing in landscape orientation such that all row and column headings appear on each printed page. All spreadsheets shall include calculations in the cells showing all formulas. Do not enter hard data where formulas were used to calculate the entered value.
- No hyperlinks
- Proposals shall be in English and in U.S. dollars.
- Proposals shall be Microsoft Office (Word, Excel, PowerPoint) 2010 and newer versions or Adobe Acrobat (PDF) compatible. PDF files shall be searchable when reviewed electronically.

2.1 Cover Page and Table of Contents

Offeror shall include a cover page and table of contents for each proposal volume. The cover page shall identify the solicitation number, proposal volume and title, and the Offeror's name. The cover page and table of contents will not count against page limitations.

2.2 Glossary of Abbreviations and Acronyms

Offer shall include a glossary of abbreviations and acronyms for each proposal volume that provides corresponding definitions. Glossaries will not count against page limitations.

2.3 Page Numbering System

Offeror shall use a standard page numbering system to facilitate proposal references. All pages shall be numbered consecutively for each section within a volume. Charts, graphs, and other inserted materials shall be included in the page numbering system.

2.4 Restriction on Disclosure and Use of Data

Offerors that include in their proposals data that they do not want disclosed to the public for any purpose, or used by the Government except for evaluation purposes, shall mark the title page with the following legend:

"This proposal includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed in whole or in part for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this Offeror as a result of, or in connection with, the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [insert numbers or other identification of sheets]";

Offerors shall also mark each sheet of data it wishes to restrict with the following legend:

"Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal."

2.5 File Naming Convention

All proposal files shall include the Offeror's company name, volume #, document name, and other useful identifying information. For example:

- Company_Volume_I_Technical Approach
- Company_Volume_I_Key Personnel Resume for Jane Doe
- Company_Volume_II_Past Performance Reference for N00024-##-X-####
- Company_Volume_III_Cost Proposal Narrative
- Company_Volume_IV_Cover Letter

3.0 PROPOSAL ORGANIZATION AND CONTENT

Offeror shall organize its proposal and include all proposal content exactly as described herein. Offeror shall organize its proposal into separate volumes and adhere to page limitations as delineated in the Proposal Organization Table below. Page limitations will be treated as maximums. If exceeded, excess pages may not be read or considered in proposal evaluation. When both sides of a sheet display printed material, it shall be counted as two pages.

Proposal Organization Table		
Volume	Proposal Content	Page Limitation
VOLUME I - Technical (Factor 1)	Element A: Technical Approach	20 pages
	Element B: Management Approach	12 pages
	Element C: Personnel Approach	Staffing Plan- No page limit. Key Personnel: 2 pages per resume.
VOLUME II - Past Performance (Factor 2)	Past Performance References	3 pages per reference
Volume III - Cost Proposal (Factor 3)	Cost Proposal Spreadsheet	No page limit
	Cost Proposal Narrative	
VOLUME IV - Contract Documentation	Cover letter Solicitation Fill-ins Small Business OCI Mitigation Plan Pre-Award Survey (SF1408) Security Requirements (DD 254)	No page limit

3.1 VOLUME I - TECHNICAL (FACTOR 1)

3.1.1 Element A - Technical Approach

The submission of an offer constitutes unconditional acceptance to perform all of the tasks described in the SOW/PWS; therefore, Offeror's proposal need not address every single aspect of the SOW/PWS. Offeror shall describe its specific understanding, capability, experience, and technical approach with regards to the following requirements:

5.1.1 Provide subject matter technical expertise in the development of RBS models utilizing OPUS SUITE [OPUS and SIMLOX].

5.6.1 Execute and deliver RBS models to support a system's development and sustainment throughout its lifecycle using the Navy Common Readiness Model (NCRM).

5.6.3 Provide model results to NAVSEALOGCEN and stakeholders utilizing the approved standardized NAVSEALOGCEN RBS Results Spreadsheet with coversheet to memorialize the RBS allowance list, configuration, and part data (CDRL A002).

5.8.1 Provide support to NAVSEALOGCEN for the MARRC-RB RBS package submission upon receiving concurrence from the program office.

5.9.2 Provide monthly customer progress reports (CDRL A002) using the government provided format to the sponsor and NAVSEALOGCEN Deputy Customer Advocate (DCA) detailing a description of the project, summary of progress, milestones achieved, problems encountered, changes in requirements, overall assessment of the project, and an estimated date of completion.

Offeror should organize its technical approach by grouping together capability, understanding, experience, and approach by specific SOW/PWS requirements, and/or by sample problem if applicable. Offeror shall clearly demonstrate its ability to meet the requirements. Offeror shall provide explanatory details assuming that the Government has no prior knowledge of its facilities, capabilities, or experience. Offerors shall identify technical uncertainties and assumptions within the requirements and provide specific courses of action for their resolution. Offerors are encouraged to address any innovative approaches to meeting the requirements. Offeror shall not simply rephrase or restate the Government's requirements in the proposal. Proposals that merely reiterate the Government's own requirements shall be deemed unacceptable and thus ineligible for award. Offerors are cautioned that failure to provide the necessary information may result in its adjectival ratings being downgraded accordingly.

3.1.2 Element B - Management Approach

Offeror shall:

- Describe overall management approach including details about processes, tools, and other unique characteristics that demonstrate the ability to successfully manage this effort.
- Provide an organizational chart and describe the management structure addressing the roles and responsibilities of key personnel and the reporting lines of authority.
- Describe the approach to communication with Government and other stakeholders including details on status reports, meetings, and other forms of communication.
- Describe the quality control process including a discussion on how performance and deliverables will meet the Government's quality standards **in accordance with Attachment 2 - QASP**.
- Describe the approach for monitoring and controlling costs during performance.
- Describe the approach for risk management including identification of risks and mitigation strategy.
- Describe the subcontractor team being proposed under this task order, the specific requirements anticipated to be subcontracted, the rationale for why these subcontractors were selected to perform this work, and the overall approach to subcontractor management.

- Describe a detailed plan of action addressing all required steps that need to be taken to fully assume responsibilities under this task order **within 30 calendar days from task order award**. This plan shall identify measurable milestones for when actions will be completed. This plan shall address hiring, onboarding, and training of new personnel.

3.1.3 Element C - Personnel Approach

Staffing Plan. Offeror shall provide a staffing plan using the format provided in **Attachment 3 - Staffing Plan**. Offeror shall complete all of the information requested within the provided template. Offeror shall include all proposed personnel, including those of its subcontractors, necessary to perform all aspects of the SOW/PWS. Offeror shall propose staffing in accordance with the labor hours identified in Section B. Offeror shall propose staffing in accordance with **Attachment 4 - Personnel Qualifications**.

Offeror shall preface the names of contingent hires with "Contingent -"; for example, "Contingent - Jane Doe." Offeror shall preface the names of key personnel with "Key -"; for example, "Key - Jane Doe." Offeror shall use "TBD" for non-key positions that do not have identified personnel. "TBD" may also be used for labor hours associated with surge or special study CLINs/SLINs, if such CLINs/SLINs are included in Section B.

Offeror shall provide a mapping of any company-specific labor categories it, or its subcontractors, proposes in the staffing plan to the corresponding Government Standard eCRAFT Labor Categories. Unless specified already by the Government, Offeror shall propose Standard eCRAFT Labor Categories based on the descriptions listed at: <http://www.navsea.navy.mil/Home/Warfare-Centers/NUWC-Newport/Partnerships/Commercial-Contracts/Labor-Categories/>. For labor categories that provide for various levels (I, II, III, IV), Offeror shall select the level that best matches the proposed individual and company-specific labor category. For Service Contract Act (SCA) labor categories (if applicable), Offerors may propose an SCA labor category listed in the SCA Directory of Occupations at: <http://www.dol.gov/whd/govcontracts/sca.htm>.

Offeror shall propose a staffing plan in the technical volume that fully aligns with the staffing included in the cost proposal. Discrepancies between the proposed staffing identified in the technical and cost proposal may result in an identification of risk, a lowering of the adjectival rating in the technical proposal, and/or an upward adjustment to the proposed cost.

Note: Offerors should attempt to minimize the number of proposed labor personnel for which candidates have not been identified. From a U.S. Government proposal evaluation perspective, proposal risk may increase with high levels of individuals proposed as TBD or contingent. Nevertheless, in the Staffing Plan narrative, Offeror may describe actions it has taken to mitigate the impact of these risks to the Government. For example, higher levels of education and relevant experience in a proposed work force demonstrate a richer labor mix. Proposing a richer labor mix, in appropriate tasks under this order, may reduce the performance risk that the Government bears in accepting an Offeror's proposal. In this example, the Offeror may discuss the potential benefits of the richness of its proposed labor mix in the Staffing Plan narrative but should clearly describe how a richer labor mix in a task reduces the performance risk to the Government.

Key Personnel. Offeror shall provide one resume for each individual proposed to fulfill the positions identified as key personnel in accordance with **Attachment 4 - Personnel Qualifications**. All key personnel positions shall identify a current employee or contingent hire to fulfill the role. Each resume shall demonstrate the key personnel's qualifications to complete the tasking for which person has been proposed to perform.

Offeror shall submit a current "letter of intent" (with salary information redacted) with all resumes supplied for contingent key personnel hires. The letter of intent does not count against page limitations and must be signed by the contingent hire employee and the Offeror.

Key personnel resumes shall include the following information:

- Name
- Key personnel position

- Security clearance level
- Citizenship
- Summary indicating how personnel qualifications are met (e.g., years of relevant experience)
- Chronology of education, training, and degrees/certifications held
- Chronology of work experience with emphasis on PWS related experience

Key personnel are deemed essential to the performance of this effort and cannot be replaced without prior Government approval in accordance with C-237-H002 SUBSTITUTION OF KEY PERSONNEL (OCT 2018). The qualifications listed in each individual proposed key personnel resume, not the specific individual, are the materially relevant aspects of the proposed key personnel partially forming the basis of award. Therefore, even if a proposed key personnel becomes unavailable to the Offeror between proposal submission and award, the Government will evaluate and make its award decision based on the qualifications listed on the proposed resume(s). When the Government awards a task order under those circumstances, the Government will require the awardee to use the qualifications listed on the relevant proposed key personnel resume as the basis for replacing the individual under C-237-H002 SUBSTITUTION OF KEY PERSONNEL (OCT 2018) during task order performance. The Offeror shall make no substitution of key personnel without prior notification to and concurrence of the Contracting Officer

3.2 VOLUME II - PAST PERFORMANCE (FACTOR 2)

Offeror shall provide all past performance information in accordance with **Attachment 5 - Past Performance Reference**. Offeror shall provide three past performance references, if available, which shall reflect recent experience performed within the last **five** years of the solicitation release date and that demonstrates experience relevant to the solicitation's PWS/SOW. In addition to these three past performance references, Offeror shall submit one additional past performance reference for each subcontractor proposed to perform more than **10%** of the total labor hours, if available. Offeror shall describe how the past performance references are relevant including details about how it is similar in scope and complexity to this solicitation's SOW/PWS.

3.3 VOLUME III - COST PROPOSAL (FACTOR 3)

3.3.1 Section B Pricing

Offeror shall submit Section B pricing for each priced CLIN/SLIN in the cost proposal spreadsheet (Attachment 6). The Section B pricing submitted in the completed solicitation (Volume IV) will take precedence should there be any discrepancies with any other pricing information submitted. As such, the resulting task order award will be made to the successful Offeror using their proposed Section B pricing.

3.3.2 Cost Proposal Spreadsheet

Offeror and their subcontractors shall each separately submit a cost proposal spreadsheet using the format set forth in **Attachment 6 - Cost Proposal Spreadsheet**. The cost proposal spreadsheet shall provide a detailed breakout of every single cost element proposed across each base and option year as applicable. The cost proposal spreadsheet shall include calculations in the cells showing all formulas used to calculate the values. Do not enter hard data where formulas were used to calculate the entered value.

The Offeror's cost proposal spreadsheet shall be overarching, encompassing all proposed costs inclusive of sanitized subcontractor costs, and it shall fully align with and support the proposed Section B pricing. Subcontractor's unsanitized cost proposal spreadsheets shall be submitted separately through the PEE Solicitation Module in order to protect their proprietary information. Subcontractor cost proposals shall be received by the time and date specified for receipt of proposals specified in this solicitation.

Offeror shall provide a clear crosswalk of all company-specific labor categories to corresponding Government Standard eCRAFT Labor Categories. Unless specified already by the Government, Offeror shall propose Standard eCRAFT Labor Categories based on the descriptions listed at: <http://www.navsea.navy.mil/Home/Warfare-Centers/NUWC-Newport/Partnerships/Commercial-Contracts/Labor-Categories/>. For labor categories that provide for various levels (I, II, III, IV), Offeror shall select the level that best matches the proposed individual and company-specific labor category. For Service Contract Act (SCA) labor categories (if applicable), Offerors may propose an SCA labor category listed in the SCA Directory of Occupations at <http://www.dol.gov/whd/govcontracts/sca.htm>.

3.3.3 Cost Proposal Narrative

Offeror shall provide a cost proposal narrative that fully substantiates the reasonableness and realism of the proposed costs. The cost proposal narrative shall fully align with and support the proposed Section B pricing. The cost proposal narrative shall fully corroborate every cost element that is proposed. Providing insufficient information to substantiate the reasonableness and realism of the proposed costs may result in the identification of a risk, an upward cost adjustment, and/or in the offer no longer being considered eligible for award.

Offeror shall propose realistic costs within its proposal. Offeror bears the sole responsibility to demonstrate that its proposed costs are realistic within its proposal. Offeror is advised that proposing unrealistically lower costs without substantial justification will be an indication that the Offeror does not have a clear understanding of the requirements or does not have the requisite capability to support the effort. Any inconsistency between promised performance in the technical proposal (e.g. Volume 1 - Technical) and the proposed cost must be explained in the proposal. Any inconsistency, if unexplained, may raise a fundamental question of the Offeror's understanding of the nature and scope of the work required and may adversely impact the evaluation of the Offeror's proposal.

The cost proposal narrative shall address:

Subcontractors. Offeror shall describe the contract type proposed for each subcontractor and rationale for why the chosen contract type is most appropriate. In particular, Offeror shall demonstrate the suitability of any Time-and-Materials or fixed price contract types (e.g. FFP, FFP LOE, etc.) and describe how the Government will be billed throughout the performance of this requirement. Offeror shall demonstrate that their subcontractors have the necessary business systems to perform the contract types being proposed. Offeror shall conduct appropriate cost or price analysis to establish the reasonableness of the proposed subcontract prices and include the results of these analyses within its cost proposal narrative, in accordance with FAR 15.404-3(b).

All subcontractors shall submit cost proposal narratives in order to fully substantiate the reasonableness and realism of their proposed costs. Subcontractors that are proposed on cost reimbursement basis shall provide the same level of information as required from the Offeror to substantiate their own costs within their cost proposal narratives. Subcontractors that are proposed on a Time-and-Materials or fixed price basis (e.g. FFP, FFP LOE, etc.) are not required to provide the same level details as required under cost reimbursable proposals, but shall still provide an itemized breakout of pricing that is customary with the contract type proposed. Subcontractor unsanitized cost proposal narratives shall be submitted separately through the PEE Solicitation Module in order to protect their proprietary information. Subcontractor cost proposals shall be received by the time and date specified for receipt of proposals specified in this solicitation.

Labor hours. Offeror shall propose the labor hours exactly as specified in Section B, and shall demonstrate overall adherence to the Section B labor hours. The labor hours shall include both the Offeror and subcontractor labor hours, if applicable.

Direct labor rates. Offeror and cost reimbursement subcontractors shall describe the basis of estimate for each direct labor rate proposed and provide substantiating information that fully corroborates each direct labor rate proposed. The basis of estimate must state the current geographical location of the personnel associated with each direct labor rate at the time of proposal submission. The Government reserves the right, at its discretion, to adjust direct labor rates upward in its cost realism evaluation to reflect prevailing rates in the performance location, regardless of personnel's intent to relocate, telework, or [other circumstances].

For each current employee named in the cost proposal spreadsheet, Offeror and cost reimbursement subcontractors shall provide a screenshot that captures pertinent information from the employer's payroll system, incurred within the last three months preceding release of this solicitation. Payroll screenshots shall not contain any personally identifiable information, such as, social security numbers, date and place of birth, etc. Cost proposal narratives shall fully explain all pertinent data on a screenshot. The Government must be able to derive the individual's direct rate (both inclusive and exclusive of the impact of uncompensated overtime, if proposed) from the payroll screenshot. Alternatively, Offeror and cost reimbursement subcontractors may provide payroll verification instead of payroll screenshots. Payroll verification shall consist of a form containing the named personnel, proposed labor category, direct labor rate, description of current position, and a signed certification by an authorized representative of the company that the information contained in the form is correct and current within the last three months preceding release of this solicitation. This supporting direct labor rate information shall clearly map to individual direct labor rates included within the cost proposal spreadsheet.

For each contingent hire in the cost proposal spreadsheet, Offeror and cost reimbursement subcontractors shall clearly indicate named contingent hires and shall provide a signed letter of intent that explicitly lists the agreed upon annual salary for the named individual and the amount of uncompensated work required. The cost proposal narrative shall fully explain all pertinent data about the letter of intent. The Government must be able to derive the individual's direct rate (both inclusive and exclusive of the impact of uncompensated overtime, if proposed) from the letter of intent information.

For any proposed position for which a specific candidate has not been identified, Offerors and cost-reimbursement subcontractors must provide supporting documentation to justify the estimated cost. If a comparable position with available payroll data exists, provide that data and a detailed analysis explaining how the comparable position aligns with the proposed position. If no comparable position exists, provide alternative cost data and a detailed basis of estimate that supports the proposed cost estimate for the position.

Uncompensated Overtime. Any uncompensated overtime proposed shall be in accordance with FAR 52.237-10, IDENTIFICATION OF UNCOMPENSATED OVERTIME. For any Offeror and/or subcontractors that proposes uncompensated overtime, Offeror and/or subcontractor shall ensure compliance with the following. Describe the company's uncompensated overtime policies and include a copy of its policy addressing uncompensated overtime. Describe the uncompensated overtime being proposed along with an explanation of how it will be used in performance of this requirement and why it is necessary. Describe how the adjusted hourly rate was derived while clearly demonstrating the reasonableness and realism. Describe the company's historical levels of uncompensated overtime incurred previously and provide substantiating historical data that corroborates the adjusted hourly rates proposed.

Forward Pricing Rate Agreement (FPRA) or Forward Pricing Rate Recommendation (FPRR). Offeror and cost reimbursement subcontractors shall indicate whether an FPRA or FPRR has been established for their company and the extent it was used in establishing proposed costs. If an FPRA/FPRR exists, a copy shall be provided within the cost proposal narrative.

Escalation. The below table reflects minimum escalation rates. Offeror may propose escalation that deviates from these minimum escalation rates; however, the Government reserves the right to make upward cost realism adjustments using these minimum escalation rates, unless proposed escalation rates are fully supported by an approved FPRA.

	Base Year	Option Year 1	Option Year 2	Option Year 3	Option Year 4
Minimum Escalation Rate	0%	3.0%	3.0%	3.0%	3.0%

Indirect Rates. Offeror and cost reimbursement subcontractors shall describe its proposed indirect rates, basis of estimate, and calculation methodologies. Offeror and cost reimbursement subcontractors shall provide the three most recent years of incurred actuals for each proposed indirect rate, any provisional billing rates available, also indicating the beginning and end dates for each fiscal year. This history shall include the most recently completed fiscal year even if the rates are considered preliminary and have not been submitted to DCAA for audit. The Offeror shall note whether the actual rates have been audited by DCAA or any other independent organization; specifically state which indirect rates have been finalized by DCAA/DCMA. If proposed rates are below historical rates, the cost narrative shall include an explanation along with supporting information to corroborate why the proposed indirect rates that are lower than historical rates. If a cap on any of the indirect rates is being proposed, the cost narrative shall identify each capped rate and shall propose legally binding verbiage, which can be included in the resultant task order award subject to Government acceptance.

Maximum Pass-Through and Fee Rates. Offeror shall ensure its proposal is in compliance with the "Maximum Pass Through Rate" and "Maximum Profit/Fee Rate" requirements contained within its basic IDIQ MAC. Any proposed rate that exceeds these maximum rate requirements may render the proposal unacceptable, and thus ineligible for award. Fee becomes a fixed dollar amount at the time of task order award and is subject to the associated fee payment clauses in Section B. Offeror's proposed fee rate shall represent the maximum fee rate applicable to its subcontractors under this effort.

The Government also strongly encourages the Offeror to eliminate "double pass-thru" costs by avoiding second tier subcontractors /consultants during performance and, where this situation is unavoidable, limiting subcontractor pass-thru costs to the lower of: (1) The Offeror's pass-thru rate under their IDIQ MAC, or (2) The subcontractor's pass-thru rate under their IDIQ MAC, if applicable.

Other Direct Costs (ODCs). Offeror shall propose ODCs in accordance with below table. The below table reflects Government estimated ODCs, which include travel and incidental material costs only. The estimated ODCs do not account for any company specific burdens such as material handling or G&A. Offeror shall propose all applicable burdens in accordance with its disclosure statements.

	Base Year	Option Year 1	Option Year 2	Option Year 3	Option Year 4
ODCs	\$50,000.00	\$50,000.00	\$50,000.00	\$50,000.00	\$50,000.00

In order for any additional expenses to be allowed as a direct charge under the resulting task order, it must be identified and described within the cost proposal narrative and be reflected in the Section B pricing. For example, the ODC estimates do not include facility related costs since these are typically treated as an indirect cost; however, if the Offeror proposes to direct charge facility costs, Offeror shall propose such cost separately from the ODC estimate, provide a basis of estimate, rationale for direct charging such cost, and explain how the direct cost will be properly allocated to this requirement. ODCs are not subject to fee. Reimbursement for travel will be in accordance with the Joint Travel Regulation (JTR) and B-231-H001 TRAVEL COSTS (NAVSEA) (OCT 2018).

3.4 VOLUME IV - CONTRACT DOCUMENTATION

3.4.1. Cover Letter.

Offeror and subcontractors shall provide a cover letter with the following information:

- Solicitation number;

- Company name, SeaPort NxG MAC IDIQ number, CAGE code, Unique Entity ID (UEI), address, e-mail address, and telephone number;
- A statement confirming agreement with all terms, conditions, and provisions included in the solicitation and agreement to furnish any or all items upon which prices are offered at the price set opposite each item;
- A statement that the proposal is valid through **365** calendar days from the date specified for receipt of proposals;
- Names, titles, telephone numbers, and e-mail addresses of persons authorized to negotiate on the Offeror's behalf with the Government in connection with this solicitation;
- DCAA and DCMA office POC, including branch location, contact name, telephone number and e-mail address;
- Name, title, and signature of person authorized to sign the proposal. Proposals signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office. The Offeror's signature on their proposal indicates the company will meet all requirements of the SOW/PWS, without exception; and
- Identify all enclosures being transmitted as part of the Offeror's proposal.
- If an Offeror believes no organizational conflict(s) of interest exists, an affirmative statement that no such conflict exists shall be included in the cover letter.

3.4.2 Solicitation Fill-ins.

Offeror shall complete all solicitation fill-ins, including Section B CLIN pricing using the latest amended solicitation version and provide a copy within Volume IV.

3.4.3 Small Business Participation.

The North American Industry Classification (NAICS) code applicable to this solicitation is 541330. Therefore, companies proposing as a subcontractor under this solicitation as a small business concern must have had an average annual receipt over its five previous fiscal years that was less than \$47,000,000. Companies proposed as a small business concern shall meet this size standard as of the date of the proposal submission under this solicitation.

Offeror is advised that this solicitation is 100% set aside for **Women-Owned Small Businesses**. Immediately after the specified closing date and time, the Government will verify each Offeror's size status in SAM.gov that the Offerors are certified as **Women-Owned Small Business**. Any proposal not certified appropriately will be ineligible for award and, therefore, will not be evaluated. For 8(a) set asides, SAM.gov will be checked upon receipt of proposals and the SBA will be contacted prior to award to ensure the apparently successful Offeror is still in good standing in the 8(a) program.

In the event multiple similarly situated small businesses join in order to meet the requirement to perform more than 50% of the effort, Offerors are advised that there may be an inherent technical risk associated with no clear prime contractor in charge of ensuring successful performance. Offerors should consider this risk in determining how many partners are needed in order to comply with the greater than 50% requirement.

3.4.4 Organizational Conflict of Interest (OCI) Mitigation Plan.

Offeror's OCI Mitigation Plan shall be provided in Volume IV. In accordance with the "C.14 ORGANIZATIONAL CONFLICT OF INTEREST" clause within the SeaPort-NxG IDIQ MAC, Offeror shall identify any and all conflicts of interest or potential conflicts of interest related to this solicitation. Offerors shall follow the below described two-step process for identifying known or potential OCI issues to the Government for this solicitation.

Step 1: If it is believed that conflicts of interest are real, possible, or perceived, the contractor shall submit a letter within fourteen (14) days of the release of the solicitation identifying those OCI issues and the strategy that the Offeror intends to use for mitigation. This letter will be for notification purposes only, for the Government to conduct any research, and no determination will be made by the Government at that time. If no OCI issues are present or anticipated, no action is required of the Offeror within this window.

Step 2: Offerors shall submit a statement in affirmation or negation whether they have an OCI conflict regarding this solicitation. If OCI issues are present or anticipated, Offerors shall provide details and submit an OCI mitigation plan and its corporate policy for resolving as part of their proposal submission. If it is believed that no conflicts of interest exist, then the Offeror shall clearly state this, in addition to providing their corporate policy for resolving OCIs. Organizational charts and/or corporate policy are authorized to be submitted in addition to the OCI Mitigation Plan and do not count toward any page limitation.

Award will only be made to an Offeror, including all subcontractors, that has no organizational conflict of interest as defined in FAR 9.5 or that the Government determines has provided a satisfactory mitigation plan in accordance with L-209-H009 herein. Failure by an Offeror to disclose a potential OCI or to submit an OCI mitigation plan with its proposal may render itself no longer being considered for award.

3.4.5 Pre-Award Survey (SF1408).

Offeror and cost reimbursement subcontractors shall assert whether it has a DCAA approved accounting system and provide the date it was approved. If the Offeror or any cost reimbursement subcontractors do not have an approved accounting system, then an SF1408 Pre-Award Survey shall be completed. Offeror is solely responsible for verifying that subcontractors proposed on a cost reimbursement basis have either an approved accounting system or have submitted the SF1408 as part of the subcontractor's proposal. An SF1408 does not need to be submitted for companies that already have an approved accounting system. A copy of the SF1408 is at <https://www.gsa.gov/Forms/TrackForm/32838>.

3.4.6 Security Requirements.

Security requirements associated with this effort have been identified in **Attachment 1 - DD254**. Offeror shall demonstrate the ability to meet the facility clearance and safeguarding capability requirements identified in the attached DD254. Describe the plan to implement the required security clearances and physical access requirements during the transition period so that service is not interrupted. If the Offeror does not currently possess the required facility clearance, the Offeror shall demonstrate the steps it will take to be granted the facility clearance in accordance with DoDM 5220.32 (or latest guidance), including a detailed schedule for attaining the required facility clearance.

3.4.7 Government Furnished Property (GFP).

GFP associated with this effort has been identified in **Attachment 7 - GFP**. Offeror shall describe its plan for managing this GFP in accordance with DFARS 252.211-7007 'Reporting of Government-Furnished Property'.

3.4.8 Cybersecurity Maturity Model Certification (CMMC) unique identifier(s) (UIDs)

The Offeror shall provide the CMMC UIDs issued by the Supplier Performance Risk system (SPRS), in accordance with DFARS 252.204-7025(d), for each contractor information system that will process, store, or transmit Federal Contract Information (FCI) or Controlled Unclassified Information (CUI) during performance of a contract, task order, or delivery order resulting from this solicitation.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-7	System for Award Management.	Nov 2024		
52.204-22	Alternative Line Item Proposal.	Jan 2017		
52.215-1	Instructions to Offerors-Competitive Acquisition.	Nov 2021		
52.215-16	Facilities Capital Cost of Money.	Jun 2003		
52.215-22	Limitations on Pass-Through Charges-Identification of Subcontract Effort.	Oct 2009		
52.237-10	Identification of Uncompensated Overtime.	Mar 2015		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.215-7010	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data.	May 2024		
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	Jan 2023		

FAR Clauses Incorporated by Full Text

52.211-14 Notice of Priority Rating for National Defense, Emergency Preparedness, and Energy Program Use. (Apr 2008)

NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE, EMERGENCY PREPAREDNESS, AND ENERGY PROGRAM USE (APR 2008)

Any contract awarded as a result of this solicitation will be ☐ DX rated order; ☐ DO rated order certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR700), and the Contractor will be required to follow all of the requirements of this regulation. [Contracting Officer check appropriate box.]

(End of provision)

52.216-1 Type of Contract. (Apr 1984)

TYPE OF CONTRACT (APR 1984)

The Government contemplates award of a Cost Plus Fixed Fee[Contracting Officer insert specific type of contract] contract resulting from this solicitation.

(End of provision)

52.233-2 Service of Protest. (Sep 2006)

SERVICE OF PROTEST (SEPT 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from Michael VanDeMark, Naval Sea Logistics Center, 5450 Carlisle Pike, Suite 307 Mechanicsburg, PA 17050-2411, Phone: 717-605-2239, E-Mail: michael.t.vandemark.civ@us.navy.mil. [Contracting Officer designate the official or location where a protest may be served on the Contracting Officer.]

(b) The copy of any protest shall be received in the office designated above within oneday of filing a protest with the GAO.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may

identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/>_____ [Insert one or more Internet addresses]

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7025 Notice of Cybersecurity Maturity Model Certification Level Requirements.

(Nov 2025)

NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this provision, "controlled unclassified information (CUI)," "current," "Cybersecurity Maturity Model Certification (CMMC) status," "Cybersecurity Maturity Model Certification unique identifier (CMMC UID)," "Federal contract information (FCI)," and "plan of action and milestones" have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.

(b)(1) *Cybersecurity Maturity Model Certification (CMMC) level.* The CMMC level required by this solicitation is: CMMC Level 2 (Self) [Contracting Officer insert: *CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC)*]. This CMMC level, or higher (see 32 CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation-

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) *Plan of action and milestones.* If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) *CMMC unique identifiers.* The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

(End of provision)

252.215-7008 Only One Offer.

(Dec 2022)

ONLY ONE OFFER (DEC 2022)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable ____ [U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts*. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

L-204-H003 NOTIFICATION OF USE OF NAVY SUPPORT CONTRACTORS FOR OFFICIAL CONTRACT FILES (NAVSEA) (APR 2019) (Apr 2019)

(a) NAVSEA may use a contractor to manage official contract files here in after referred to as "the support contractor", including the official file supporting this procurement. These official files may contain information that is considered a trade secret, proprietary, business sensitive or otherwise protected pursuant to law or regulation, here in after referred to as "protected information". File management services consist of any of the following: secretarial or clerical support; data entry; document reproduction, scanning, imaging, or destruction; operation, management, or maintenance of paper-based or electronic mail rooms, file rooms, or libraries; and supervision in connection with functions listed herein.

(b) The cognizant Contracting Officer will ensure that any NAVSEA contract under which these file management services are acquired will contain a requirement that

- (1) The support contractor not disclose any information;
- (2) Individual employees are to be instructed by the support contractor regarding the sensitivity of the official contract files;
- (3) The support contractor performing these services be barred from providing any other supplies and/or services, or competing to do so, to NAVSEA for the period of performance of its contract and for an additional three years thereafter unless otherwise provided by law or regulation; and,
- (4) In addition to any other rights the offeror may have, it is a third party beneficiary who has the right of direct action against the support contractor, or any person to whom the support contractor has released or disclosed Protected Information, for the unauthorized duplication, release, or disclosure of such Protected Information.

(c) Submission of a proposal will be considered as consent to NAVSEA's permitting access to any information, irrespective of restrictive markings or the nature of the information submitted, by its file management support contractor for the limited purpose of executing its file support contract responsibilities.

(d) NAVSEA may, without further notice, enter into contracts with other contractors for these services. Offerors are free to enter into separate non-disclosure agreements with the file support contractor. Contact the Procuring Contracting Officer for contractor specifics. However, any such agreement will not be considered a prerequisite before information submitted is stored in the files or otherwise encumber the government.

(End of Provision)

L-209-H009 NOTIFICATION OF POTENTIAL ORGANIZATIONAL OR PERSONAL CONFLICT (S) OF INTEREST (NAVSEA) (APR 2022) (Apr 2022)

(a) Offerors are reminded that certain existing contractual arrangements may preclude, restrict or limit participation, in whole or in part, either as a subcontractor or as a prime contractor under this competitive procurement. Of primary concern are those contractual arrangements in which the Offeror provides support to **Naval Sea Logistics Center**, or related laboratories (if applicable), in support of operation of the office or any of its programs. General guidance may be found in FAR 9.505; however, this guidance is not all-inclusive. The Offeror's attention is directed to the "Organizational Conflict of Interest" (OCI) or similar requirement which may be contained in current or completed contract(s) which prohibits the prime or subcontractor

from providing certain supplies or services to the Government as described above during the period of the current "support" contract(s) or for a period after completion of the "support" contract(s). Notwithstanding the existence or non-existence of an OCI or similar requirement in current or completed contract(s), the Offeror shall comply with FAR subpart 9.5 and identify whether an OCI exists and not rely solely on the presence of an OCI or similar requirement.

(b) Offerors also are reminded that certain potential conflicts of interest may arise where an Offeror has unequal access to nonpublic information about a competitor that may provide the Offeror with an unfair competitive advantage and preclude, restrict or limit participation, in whole or in part, either of the individual, subcontractor or prime contractor under this competitive procurement. For example, a potential conflict may arise if former Department of Navy employee(s), subcontractors, or teaming partners of the Offeror may have gained access to nonpublic information about a competitor through participation in previous or ongoing performance or during the solicitation development/source selection process associated with this competitive procurement, and then participates in the formation of the Offeror's proposal. Other potential conflicts of interest may arise where either the former Department of Navy employee(s), subcontractors, or teaming partners of the Offeror under this competitive procurement set the ground rules for competition; for example, by drafting specifications or assisting in the drafting of the statement of work. General guidance may be found in FAR 3.101 and 9.505; however, this guidance is not all-inclusive.

(c) If an Offeror identifies a potential conflict of interest that exists at any tier, that Offeror is requested to notify the Contracting Officer within 14 days of the date of this solicitation. The Offeror shall provide: (1) the contract or previous source selection's solicitation number and name and phone number of the Contracting Officer for the contract which gives rise to a potential conflict of interest; (2) a copy of the requirement; (3) the statement of work and technical instruction from the existing contract, as applicable; (4) a brief description of the type of work to be performed by each subcontractor under the competitive procurement; (5) a brief description of the individual's, subcontractor's, or teaming partner's unequal access to nonpublic information about a competitor, which may lead to a conflict of interest in the formation of the Offeror's proposal, or establishment of ground rules for this competitive procurement, as applicable; (6) an OCI mitigation plan, as applicable; and (7) any additional information the Contracting Officer should consider in making a determination of whether a conflict of interest exists. The Government may independently verify the information received from the Offeror. The requirement to identify potential conflicts of interest as outlined herein continues until contract award. Notwithstanding the above, the Government reserves the right to determine whether a conflict of interest exists based on any information received from any source.

(d) The Government will notify an Offeror of any conflict of interest within 14 days of receipt of all required information. Those Offerors deemed to have a conflict of interest may be ineligible for award. Failure to provide the information in a timely manner does not waive the Government's rights to make a conflict of interest determination. The Offeror is notified that if it expends time and money on proposal preparation, such expenditure is at its own risk regardless of whether the Government determines a personal or organizational conflict of interest does or does not exist.

(e) Any potential prime contractor which proposes an individual, subcontractor, or teaming partner later determined to have a conflict of interest and deemed ineligible to participate in the current competition, may not be granted the opportunity to revise its proposal to remove the ineligible individual, subcontractor or teaming partner. The Government reserves the right to determine which Offerors remain in the competitive range through the normal source selection process.

(f) If the Offeror determines that a potential organizational and/or personal conflict of interest does not exist at any tier, the Offeror shall include a statement to that effect in its response to this solicitation.

(End of Provision)

L-211-H001 UPDATES TO PERIOD OF PERFORMANCE AND DELIVERY DATES (NAVSEA) (Jun 2022)
(JUN 2022)

For proposal purposes the estimated date of contract, task order, or delivery order award is **30 April 2026**. The government reserves the right to award sooner or later if necessary. The delivery dates and/or period of performance start and end dates in Section F will be updated at award based upon actual contract, task order, or delivery order award date.

(End of Provision)

L-215-H004 INSTRUCTIONS FOR PRICING OF CONTRACT DATA REQUIREMENTS LIST (Oct 2018)
(NAVSEA) (OCT 2018)

(a) The Offeror shall complete the "Price Group" (Block 17) and "Estimated Total Price" (Block 18) of each data item on the Contract Data Requirements List (CDRL) of this solicitation using the following instructions:

(1) Block 17. Use the specified price group defined below in developing estimated prices for each data item on the DD Form 1423:

(a) Group I. Definition - Data which is not otherwise essential to the offeror's performance of the primary contracted effort (production, development, testing, and administration) but which is required by DD Form 1423.

(i) Estimated Price - Costs to be included under Group I are those applicable to preparing and assembling the data item in conformance with Government requirements, and the administration and other expenses related to reproducing and delivering such data items to the Government.

(b) Group II. Definition - Data which is essential to the performance of the primary contracted effort but the offeror is required to perform additional work to conform to Government requirements with regard to depth of content, format, frequency of submittal, preparation, control, or quality of the data item.

(i) Estimated Price - Costs to be included under Group II are those incurred over and above the cost of the essential data item without conforming to Government requirements, and the administration and other expenses related to reproducing and delivering such data items to the Government.

(c) Group III. Definition - Data which the offeror must develop for his internal use in performance of the primary contracted effort and does not require any substantial change to conform to Government requirements with regard to depth of content, format, frequency of submittal, preparation, control, or quality of the data item.

(i) Estimated Price - Costs to be included under Group III are the administrative and other expenses related to reproducing and delivering such data items to the Government.

(d) Group IV. Definition - Data which is developed by the contractor as part of his normal operating procedures and his effort in supplying these data to the Government is minimal.

(i) Estimated Price - Group IV items should normally be shown on the DD Form 1423 at no cost.

(2) Block 18. For each data item, enter an amount equal to that portion of the total price which is estimated to be attributable to the production or development for the Government of that item of data. The estimated data prices shall be developed only from those costs which will be incurred as a direct result of the requirement to supply the data, over and above those costs which would otherwise be incurred in performance of the contract if no data were required. The entry "N/C" for "no charge" will be acceptable. The estimated price shall not include any amount for rights in data. The Government's rights to use the data shall be governed by the pertinent provisions of the contract.

(End of Provision)

L-215-H006 SUBMISSION OF QUESTIONS BY OFFERORS--BASIC (NAVSEA) (APR 2022)

(Apr 2022)

(a) Offerors may submit questions or request clarification of any aspect of this solicitation. It is the Offeror's responsibility to bring to the attention of the Contracting Officer at the earliest possible time, but prior to the closing date, any ambiguities, discrepancies, inconsistencies, or conflicts between the SOW or PWS (as applicable) and other solicitation documents attached hereto or incorporated by reference. Each question should identify solicitation number, document, page number, paragraph number or other identifier relating to the question. Questions without this information may not be answered. Acknowledgment of questions received will not be made.

(b) The deadline for receipt of questions is **15 calendar days following the issue date of the solicitation, with the day after issue of the solicitation being day one**. Although every effort will be made, the Government makes no guarantee that questions received after the date above will be answered.

(c) All questions shall be submitted via email to the Primary and Secondary Solicitation Manager identified in the Solicitation Module within the Procurement Integrated Enterprise Environment (PIEE) (<https://piee.eb.mil>). The email should include the solicitation number in the subject line. Responses will be posted as an attachment to the Solicitation within the PIEE Solicitation Module.

(End of Provision)

L-216-H001 TASK ORDER GENERAL INFORMATION (NAVSEA) (JUL 2023)

(Jul 2023)

(a) This requirement is currently being satisfied by N/A under Seaport Task Order N/A. **This is a new requirement.**

- (b) Work performed under this task order will support Naval Sea Logistics Center at Mechanicsburg, PA.
- (c) The Government requirement is 251,580 total man hours (surge included) for this effort across five (5) years if all options are exercised.
- (d) This requirement is being solicited as [] unrestricted [X] small business set-aside [] 8(a) set-aside. If unrestricted, there is a small business participation requirement of N/A% applicable to both large and small business entities proposing as prime subcontractors.
- (e) There [] will be [X] will not be an industry day. If there will be an industry day, information will be provided elsewhere in this Section L.
- (f) Proposal in response to this solicitation shall be valid for 365 calendar days.
- (g) The applicable PSC is R425.
- (h) Many references and clauses within this solicitation refer to "contract" vice "order" or "task order". Offerors are advised that unless specifically referring to the basic IDIQ MAC, all references to "contract" refer to this Task Order.
- (i) Please consider the following suggestions for avoiding last-minute proposal submission problems:
- Verify your account's ability to submit the necessary proposal information (either as a prime or subcontractor) well in advance of the closing time. This may be accomplished through the following steps:
1. Login to the PIEE system as the Proposal Manager and access the Solicitation Module..
 2. To access the Solicitation Module, Offerors are required to register for a PIEE account. If an Offeror already has a PIEE account, the role of Proposal Manager can be added to the existing PIEE account. If an Offeror does not already have a PIEE account, the Offer can self-register for a PIEE user account and add the role of Proposal Manager.
 3. Resources on how to navigate the PIEE Solicitation Module are available at <https://dodprocurementtoolbox.com/site-pages/solicitation-module>.
 4. For question related to the PIEE Solicitation Module please contact disa.global.servicedesk.mbx.eb-ticket-requests@mail.mil. You can also reach PIEE support by phone at 866-618-5988.

(End of Provision)

L-245-H002 INSTRUCTIONS REGARDING GOVERNMENT PROPERTY (NAVSEA) (JUL 2024) (Jul 2024)

All offerors shall submit the following information in their proposal:

- (1) A list or description of all Government property that the offeror or its subcontractors propose to use on a rent-free basis. The list shall identify the accountable contract under which the property is held and the authorization for its use (from the contracting officer having cognizance of the property);
- (2) The dates during which the property will be available for use (including the first, last, and all intervening months) and, for any property that will be used concurrently in performing two or more contracts, the amounts of the respective uses in sufficient detail to support prorating the rent;
- (3) The amount of rent that would otherwise be charged in accordance with FAR 52.245-9, Use and Charges; and
- (4) A description of the offeror's property management system, plan, and any customary commercial practices, voluntary consensus standards, or industry-leading practices and standards to be used by the offeror in managing Government property.

(End of Provision)

L-245-H001 AVAILABILITY OF GOVERNMENT PROPERTY (NAVSEA) (JUL 2024)

(Jul 2024)

Government property is offered for use under this solicitation. The contractor is responsible for all costs related to making the property available for use, including (but not limited to) payment of all transportation, installation, and rehabilitation costs.

(End of Text)

Section M - Evaluation Factors for Award

SECTION M - EVALUATION FACTORS FOR AWARD

1.0 GENERAL

In accordance with the SeaPort-NxG basic IDIQ MAC Paragraph C.8.2. Competitive Ordering Process, a task order award will be made to the responsible Offeror whose proposal is the most advantageous to the Government under the selection criteria set forth in this solicitation. Notwithstanding any FAR Part 15 references contained herein, this procurement is being conducted under the "fair opportunity" requirements of FAR subpart 16.505.

The proposal must comply in all material respects with the requirements of the law, regulation, and all requirements set forth in this solicitation and in the SeaPort-NxG basic IDIQ MAC. A proposal that fails to meet any material requirement will render the proposal ineligible for award and it will be excluded from further consideration.

The Government intends to evaluate proposals and award based upon initial offers; therefore, Offeror's initial proposal should contain the best terms from a cost and technical standpoint. The Government reserves the right to award a task order without discussions with respective Offerors. The Government may conduct discussions if deemed in its best interest. The Government anticipates a single task order award resulting from this solicitation; however, the Government reserves the right to award more than one or no task order depending on the quality of the proposals received and the availability of funds.

The following terms and definitions will be used for proposal evaluations:

Deficiency is a material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.

Risk, as it pertains to source selection, is the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an Offeror's proposed approach to achieving the technical factor or subfactor may involve risk of disruption of schedule, increased cost or degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.

Strength is an aspect of an Offeror's proposal with merit or will exceed specified performance or capability requirements to the advantage of the Government during contract performance.

Weakness means a flaw in the proposal that increases the risk of unsuccessful contract performance.

Significant Strength is an aspect of the Offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.

Significant Weakness in the proposal is a flaw that appreciably increases the risk of unsuccessful contract performance.

2.0 BASIS FOR AWARD

The award decision will be determined based on the Government's evaluation of each Offeror's proposal against the evaluation factors identified within this solicitation. Award will be made to the responsible Offeror whose proposal demonstrates the best value to the Government based on the evaluation factors. Best value means the expected outcome of an acquisition that, in the Government's estimation, provides the greatest overall benefit in response to the requirement. A tradeoff analysis may be used when it is in the best interest of the Government to consider award to other than the lowest total evaluated cost Offeror or other than the highest technically rated Offeror. The comparison will trade off differences in technical capability based on the non-cost factors and total evaluated cost. If one Offeror has both the better technical capability and the lower total evaluated cost, then that Offeror will be the better value. If

one Offeror has the better technical capability and a higher total evaluated cost, the Government will decide whether the difference in technical capability is worth the difference in price. If it is determined that the difference in technical capability is worth the difference in price, then the more capable, higher-priced Offeror will be the better value. If not, then the less capable, lower-priced Offeror will be the better value. In order to be eligible for award, a proposal shall, at a minimum, meet the requirements of the Solicitation and demonstrate an adequate approach and understanding of the requirements. Accordingly, an offeror must receive an adjectival rating of "Acceptable" or higher under Factor 1 in order to be eligible for award.

3.0 RELATIVE IMPORTANCE OF EVALUATION FACTORS

The Government will evaluate each Offeror's proposal in accordance with the evaluation factors to determine the best value proposal. The evaluation factors represent key areas of importance to be considered in the source selection decision. The factors and associated elements have been chosen to support meaningful discrimination between competing proposals.

Factor	Elements
1. Technical	A. Technical Approach
	B. Management Approach
	C. Personnel Approach
2. Past Performance	None
3. Cost Proposal	None

The relative importance of the evaluation factors is as follows. Factor 1 is more important than Factor 2. Factors 1 and 2, when combined, are significantly more important than Factor 3.

The degree of importance of Factor 3 will increase with the degree of equality of the proposals in relation to the non-cost factors on which selection is to be based, or when the evaluated cost delta between Offerors is so significant as to diminish the value of the superiority of the non-cost factors.

4.0 DESCRIPTION OF EVALUATION FACTORS

Factor 1: Technical (Volume I)

Element A - Technical Approach. The Government will evaluate the extent to which the proposal demonstrates specific understanding, capability, and experience to successfully perform the requirements, and the soundness of the proposed technical approach.

Element B - Management Approach. The Government will evaluate the extent to which the proposal demonstrates an effective management organization with the capability, processes, and tools to successfully perform the requirements and ensure the highest quality deliverables, communication, cost management, risk management, and subcontractor management. The Government will evaluate the extent to which the proposal demonstrates a thorough and realistic approach for efficiently and effectively assuming responsibility over requirements while minimizing risk of performance disruption.

Element C - Personnel Approach. The Government will evaluate the extent to which the staffing plan addresses the labor hours identified in Section B and proposed personnel are able to perform all aspects of the SOW/PWS. The Government will evaluate the extent to which the proposal demonstrates a staffing plan and key personnel that are qualified, experienced, and suitable for performing the requirements.

Adjectival Rating Description. The Government will assign an adjectival rating for Factor 1 in accordance with the below adjectival rating table. Elements will not be separately rated.

Adjectival Rating	Description
Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

Factor 2: Past Performance (Volume II)

The Government will evaluate the past performance references for recency, relevancy and quality of performance. Recent performance includes efforts performed within the past **five** calendar years from solicitation release date. Relevant performance includes efforts that are of similar scope and complexity as identified in the PWS/SOW. Past performance references that reflect projects with a similar scope and complexity to efforts described in this solicitation will be considered to have greater importance in the evaluation of this factor. The Government will evaluate all past performance information collected and determine the quality of the Offeror's performance, general trends, and usefulness of the information and incorporate these into the assignment of a performance confidence assessment rating.

The Government reserves its right to collect and use information from sources other than those identified in the proposal to evaluate past performance. This may include, but not limited to, Federal, State, and local Government agencies, Contractor Performance Assessment Reporting System (CPARS), Better Business Bureaus, published media and electronic databases, and/or personal knowledge. The Government may contact past or current customers to collect additional information for use in evaluating past

performance. The Government reserves the right to limit or expand the number of references it decides to contact and to contact other references than those provided in the proposal. The Government reserves the right to not perform a past performance evaluation on any Offeror that is assigned an "Unacceptable" or "Marginal" adjectival rating under Factor 1 - Technical.

Adjectival Rating Description. The Government will assign adjectival ratings for Factor 2 in accordance with the following information. For recency, each past performance reference will be assigned a rating of "Recent" or "Not Recent" as determined by whether the effort was performed within the past **five** calendar years from solicitation release date. For relevancy, each past performance reference will be assigned a rating in accordance with the below table.

Adjectival Ratings	Description
Very Relevant	Present/Past Performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires
Relevant	Present/Past Performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/Past Performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires
Not Relevant	Present/Past Performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires

The third aspect of the past performance evaluation is to establish the overall quality of the Offeror's past performance. The Government will review all past performance information collected and determine the quality of the Offeror's performance, general trends, and usefulness of the information and incorporate these into a performance confidence assessment. A separate quality assessment rating will not be assigned; rather, an overall performance confidence assessment rating will be assigned based on the Offeror's overall record of recency, relevancy, and quality of performance. With respect to relevancy, more relevant past performance will typically be a stronger predictor of future success and have more influence on the past performance confidence assessment than past performance of lesser relevance. The Government will assign an overall performance confidence assessment ratings in accordance with the below table.

Adjectival Ratings	Description
Substantial Confidence	Based on the Offeror's recent/relevant performance record, the Government has a high expectation that the Offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the Offeror's recent/relevant performance record, the Government has a reasonable expectation that the Offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available or the Offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The Offeror may not be evaluated favorably or unfavorably on the factor of past performance.

Limited Confidence	Based on the Offeror's recent/relevant performance record, the Government has a low expectation that the Offeror will successfully perform the required effort.
No Confidence	Based on the Offeror's recent/relevant performance record, the Government has no expectation that the Offeror will be able to successfully perform the required effort.

While "Neutral Confidence" ratings will not be evaluated favorably or unfavorably, the Government may determine that a "Substantial Confidence" or "Satisfactory Confidence" rating is worth more than a "Neutral Confidence" past performance rating in a best value tradeoff.

Factor 3: Cost Proposal (Volume III)

The Government will perform a cost realism analysis of the cost proposal. The Government will evaluate the proposed cost elements to determine whether they are realistic for the work to be performed; reflect a clear understanding of the requirements; and are consistent with the technical proposal (e.g. Volume 1 - Technical). The Government will determine the probable cost of performance by calculating the total evaluated cost for the entire cost proposal. The total evaluated cost is the sum of the realistic costs for all priced CLINs/SLINs inclusive of options and proposed fees. The total evaluated cost is determined by upwardly adjusting proposed costs to reflect more realistic levels based on the cost realism substantiating data, unless otherwise stated in Section L. The total evaluated cost may differ from the proposed cost and will reflect the Government's best estimate of the cost of actual performance in contract execution. The total evaluated cost will be used for purposes of evaluation to determine the best value.

The Government will evaluate whether the proposed costs are unrealistically low and the Government will make upward adjustments to those proposed costs that it determines in its judgement to be unrealistically low. The Government may also assign risk, weaknesses, and/or deficiencies to proposals that contain unrealistically low costs, unsupported costs, and/or costs inconsistent with the technical volume. The Government will not evaluate whether proposed cost elements are unrealistically high in a competitive environment since the fundamental purpose of a cost realism analysis is to guard the Government against any unrealistic claims of cost savings.

The Government reserves the right to use information other than the information provided in the cost proposal in order to perform cost realism analysis and develop the total evaluated cost. This may include, but not limited to, information from DCMA or DCAA, independent government cost estimates, salary databases or websites, invoices, aggregated cost data, historical data, etc. The Government also reserves the right to limit or expand its evaluation of the cost proposal to include technical analysis, unbalanced pricing analysis, cost analysis, and/or price analysis using the methods authorized under FAR 15.404-1.

The Government reserves the right to limit cost realism analysis to only those Offerors that represent the most likely candidates for award and not make any cost realism adjustments to those Offeror's cost proposals that are high cost and have inferior adjectival ratings under Factor 1 - Technical. The Government reserves the right to not perform a cost realism analysis on any Offeror that is assigned an "Unacceptable" or "Marginal" adjectival rating under Factor 1 - Technical. The Government reserves the right to not perform cost realism analysis on subcontractor proposals that reflect less than **10%** of the total labor hours. The Government will not perform cost realism analysis on subcontractor proposals that are proposed on a Time-and-Materials or fixed priced basis (e.g. FFP, FFP LOE, etc.).

5.0 CONTRACT DOCUMENTATION (VOLUME IV)

The Government will evaluate the submitted contract documentation on a pass/fail basis to verify compliance with all requirements. If the Offeror has failed to meet any of the pass/fail requirements, the proposal is ineligible for award and will be eliminated from further consideration. The Government may waive minor oversights and irregularities in the submitted contract documentation provided that they are considered immaterial in its judgment. The Government reserves the right to not evaluate other proposal volumes I-III (Factors 1-3) if Offeror has failed to meet the requirements under Volume IV.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.217-5	Evaluation of Options.	Jul 1990		